

IN THE COURT OF RAJEEV GOYAL, SPECIAL JUDGE
(CBI), HARYANA AT PANCHKULA

HRPK010006392026



PC/03/2026

Presented on : 10-02-2026

Registered on : 10-02-2026

Decided on : 20-04-2026

STATE

Vs.

1. Sudhir Parmar son of Shri Suchet Singh, resident of Villa No.16, Signature Villa Vatika India's Next, Sector-82, Gurugram
2. Ajay Kumar son of late Shri Bharat Bhushan, resident of Villa No.16, Signature Villa Vatika India's Next, Sector-82, Gurugram
3. Roop Bansal son of late Shri Lal Chand Bansal, resident of 31-33 Floor, St.Andrews Golf Estate, Sector-65, Gurugram
4. Anil Bhalla son of Shri Raj Kumar Bhalla, resident of H.No.4, Hyde Park, Sultanpur Farm, New Delhi
5. Lalit Goyal son of Shri Suraj Parkash Goyal, resident of Flat No.1104 A, Atalias, Golf Course Extension, Gurugram, Haryana-122012

... Accused

FIR No.0006, Dated 17.04.2023,
Under Sections 120-B IPC & 7,8,11,13 of Prevention
of Corruption Act, 1988
Police Station: ACB, Panchkula

Argued by:- Shri Manjeet Singh, Dy.Director & Shri Pawan Bishnoi,
Public Prosecutor assisted by Inspector/IO Amit Kumar &
Dalbir Singh (Retd. Inspector) for State

Shri Sunil K.S. Panwar, Senior Advocate with S/Shri SPS

Rajeev Goyal,
Special Judge (CBI),
Haryana at Panchkula.
20.04.2026

Parmar & Abhishek Singh Rana, Advocates for accused
Sudhir Parmar

S/Shri SPS Parmar & Abhishek Singh Rana, Advocates
for accused Ajay Parmar

S/Shri Viraj Gandhi & Adarsh Dubey, Advocates for accused
Anil Bhalla

S/Shri Arshdeep Singh Khurana, Gurmohan Singh Bedi,
Anand Vardhan Khanna & Ms. Tannvi Sharma, Advocates for
accused Lalit Goyal

S/Shri Vijay Kumar Aggarwal (through Video Conference),
Siddharth Bhardwaj & Yavneet Dhakla, Advocates for
accused Roop Bansal

ORDER

The present case has its genesis in the alleged source information (Part of D-1/20.02.2013) received against Shri Sudhir Parmar who at the relevant time was posted as Special Judge, CBI & PMLA, Haryana at Panchkula, by virtue of which, it was alleged that Sudhir Parmar showed favour to Roop Bansal and his brother Basant Bansal, the owners/promoters of M3M & Lalit Goyal, the owner/promoter of IREO Group who were accused in criminal cases of Enforcement Directorate under the Prevention of Money Laundering Act, 2002 (PMLA) as well as other cases of CBI that were pending against them in the court of Sudhir Parmar. It was alleged that favour was shown to the above-named accused persons in lieu of undue advantage availed by Sudhir Parmar. According to prosecution, the source information disclosed the following instances of grave misconduct, abuse of official position and demand/acceptance of undue advantage/bribe by Sudhir Parmar from the accused persons in the

cases pending against them in his court:-

2. A case was registered under the Prevention of Money Laundering Act, 2002 by the Enforcement Directorate in the year 2021, following which, accused Lalit Goyal, the Vice-Chairman and Managing Director of realty giant IREO Group was arrested in November 2021 in the said case pertaining to cheating and siphoning of funds of home buyers and others. The said matter was pending in the court of Sudhir Parmar vide COMA/01/2022 titled Directorate of Enforcement Vs Lalit Goyal & Ors.

3. The source had provided screen-shots of whatsapp chats between Sudhir Parmar and another person through his own mobile phone as well as that of his nephew Ajay Parmar, wherein he allegedly demanded Rs.5-7 Crores for helping the owners of M3M in ED cases and requested the other person chatting with him to receive bribe money on his behalf from them. In the same chat, the other person states that Rs.5 Crores have already been given to Sudhir Parmar by the accused of IREO case. Copy of the whatsapp chat (Part of D-1) was enclosed with the source information report.

4. As per the source information, before his posting as Special Judge, CBI/PMLA Court Haryana at Panchkula, Sudhir Parmar was posted as ASJ/ADJ at Gurugram, where by abusing his official position of being a Judge, he got in contact with the owners of M3M and IREO group

and got undue favour by getting appointed his nephew Ajay Parmar as a Legal Advisor in M3M at a package of approximately Rs.12 Lac per annum. Subsequently, when Sudhir Parmar was transferred as Special Judge of CBI/PMLA, Haryana at Panchkula, the annual package of his nephew was straightway hiked to Rs.18-20 Lacs and Sudhir Parmar being CBI/PMLA Special Judge allegedly in connivance with the accused persons started favouring them for the sake of illegal gratification through his said nephew. These facts were disclosed in the recordings provided by the source labelled as recording Nos.1, 2, 3 & 4, copies of which alongwith transcripts (Part of D-1) were enclosed with the source information report.

5. In another audio recording No.5 provided by the source, Sudhir Parmar was asking someone for Rs.1.5 Crore (50-50 Lac per head) as illegal gratification for meeting with the accused persons. Copy of the audio recording No.5 along with its transcript (Part of D-1) was enclosed with the source information report.

6. In three other recordings provided by the source, labelled as Nos.6, 7 & 8, Sudhir Parmar was speaking with Roop Bansal and saying that he was afraid of his connection with the accused persons being disclosed due to the sensitive nature of his posting and he further told him that he never talked to Roop Bansal on his personal mobile phone and always spoke with him and other accused persons of M3M and IREO

through mobile phone or whatsapp/Facetime from the phone of his nephew Ajay Parmar working in M3M group. Similarly, Roop Bansal also tells him that they also never talk to him directly on the phone and they always talk to him through phone of his nephew Ajay Parmar. In the recording No.7, it was further disclosed that Sudhir Parmar, Special Judge had also stated that he had met the wife of accused Lalit Goyal, his Brother-In-Law Sudhanshu Mittal and had assured them that although he cannot release Lalit Goyal on bail in PMLA case, yet he would favour him by dealing with him in the court in a respectful manner and not harass him by issuing frequent warrant/notices, or denying permission to visit abroad, etc. and make him feel at home while in the court. Copies of these recordings alongwith transcripts (Part of D-1) were enclosed with the source information report.

7. More audio recordings provided by the source labelled No.9, 10 & 11, revealed that Sudhir Parmar during conversation with an unknown person, admitted/claimed that he did not let Roop Bansal become an accused in ED case bearing No.ECIR/GNZO/10/2021. In another recording with Roop Bansal, the owner of M3M, he even promised that if Roop Bansal was let off in the CBI case, then he (Sudhir Parmar) would not let him (Roop Bansal) become accused in ED case. In another recording pertaining to property worth Rs.1200 Crores, Sudhir Parmar claimed that he had spoken to Sunil Yadav, officer of ED and he

would not allow the property to be attached provided some justification for the transaction of money was shown. The said facts were disclosed in recordings Nos.9, 10 & 11. Their copies alongwith transcripts (Part of D-1) were enclosed with the source information report.

8. Further, the audio recording labelled No.12 discloses a conversation of Sudhir Parmar with one VP Gupta, alleged to be a removed/dismissed Judge of Haryana wherein, they were making a strategy to show favour with a view to extort money from Sh.TC Gupta, IAS since retired, then Director Town and Country Planning, Haryana who was apparently an accused in some case of CBI/ED. A copy of the said recording No.12, along with transcript (Part of D-1) was enclosed with the source information report.

9. In view of the above, since according to State Vigilance & Anti-corruption Bureau ("ACB" in short), Haryana, a *prima-facie* case under Sections 7, 8, 11 and 13 of the Prevention of Corruption Act, 1988 and Section 120-B of IPC was made out against Sudhir Parmar, Ajay Parmar, Roop Bansal and other unknown persons, vide letter No.3089/ACB/(H) dated 21.02.2023 (Part of D-1), Hon'ble the Chief Justice, High Court of Punjab and Haryana was requested to grant necessary permission for registration of a criminal case. Hon'ble the Chief Justice was pleased to accord permission vide letter No.05/SPL/CJS dated 17.04.2023 (D-2) whereupon, the present case FIR No.06 dated

17.04.2023 u/s 7, 8, 11, 13 of PC Act and 120-B of IPC (Part of D-2) was registered against Sudhir Parmar, the then Special Judge, CBI, Haryana at Panchkula, Ajay Singh Parmar, Roop Bansal and other unknown persons at PS ACB, Panchkula following a complaint dated 17.04.2023 (Part of D-2) made by Inspector Amit Kumar of ACB, Panchkula to the Station House Officer, PS Anti Corruption Bureau, Panchkula.

10. Investigation was taken up.

11. During investigation, searches were conducted on 18.04.2023 at the residential house of Sudhir Parmar at Gururgram, his official residence at Panchkula, residential as well office premises of Gagandeep Singh s/o Sh.Bhompal Singh at Gurugram, residential premises of Roop Bansal at Gurugram and official premises of R. Sai Transport of Sh.Rohit Singh Tomar at Gurugram.

12. During the search conducted at the rented residential premises/house of Sudhir Parmar at Gurugram where accused Ajay Singh Parmar and all other family members of Sudhir Parmar were residing together, total cash Rs.21 Lac, one mobile phone (iphone 13 pro, Model No.A2636), one Dell Laptop Latitude 3420 of Ajay Singh Parmar, one Apple watch Model No.A2477 and other documents were seized vide search list (D-6). ACB alleges that no satisfactory explanation was given by any of the family members of Sudhir Parmar regarding recovery of the said cash of Rs.21 Lac at their house.

13. Similarly, on 18.04.2023, during search at the official residence of Sudhir Parmar at H.No.4, Sector-12A, Panchkula, Haryana, one mobile phone (iphone 12, Model No.A2403) and miscellaneous papers/documents i.e. brief note of the case of Lalit Goyal and short rejoinder on behalf of Lalit Goyal to the reply filed by ED (Search List D-3) filed in CRM-M-7039 of 2022 and the papers pertaining to vehicle purchase, were recovered in the presence of independent witnesses and Sh.Subhash Mehla, the then Ld. District & Sessions Judge who was specially deputed by Hon'ble High Court for the said search. ACB alleges that the said brief note and copy of rejoinder labelled as "draft order" and "synopsis" seemed to have been given by the accused party i.e. Lalit Goyal, the owner of IREO to guide or direct Sudhir Parmar to decide his case which was pending in his court, as the said document was not found with any court file/office file and it was kept separately in isolation in one almirah of bed room of Sudhir Parmar.

14. ACB says that the last page of rejoinder filed on behalf of Lalit Goyal to the reply filed by ED in CRM-M-7039 of 2022 does not have any name of the petitioner or verification etc. printed on it, establishing thereby that this document was not part of any official record and this incomplete document containing facts/points favorable to accused Lalit Goyal was unauthorizedly supplied to Sudhir Parmar.

15. On the same day, during search conducted at the official

premises of Sh. Rohit Singh Tomar, the owner of R. Sai Transport, his mobile phone (iphone 13 having Airtel sim No.99106-11099), CCTV-DVR make HIKVISION and relevant copies of Ledger Book and other documents were seized vide seizure memo D-7 & D-8. The said Ledger Book revealed that amount of Rs.1.30 Crore was transferred to the accounts of Ajay Singh Parmar, Paramvir Singh Parmar and their mother Mrs.Pushpa Devi in parts since March 2022 to February 2023 and for which no documents or agreement was prepared between the parties, no interest and return of payment was done. According to ACB, Sh.Rohit Singh Tomar could not give satisfactory explanation in the matter and told that he was known to Sudhir Parmar for last 4-5 years and he had given the said amount of Rs.1.30 Crore to his family members as friendly loan due to the reference/influence of Sudhir Parmar. The analysis of communication through mobile phones of Rohit Singh Tomar and Sudhir Parmar disclosed that they were known to each other since long but Rohit Singh Tomar was not known to the family members of Sudhir Parmar.

16. ACB has also referred to a search conducted by a team of Enforcement Directorate in a subsequent case registered by ED and it is claimed that during the said search, some empty envelopes of M/s R. Sai Transport of Rohit Singh Tomar were recovered from the above rented house of family of Sudhir Parmar at Villa No. 16, Street No. 1, Signature Villa Vatika India's Next, Sector-82, Gurugram where family of Sudhir

Parmar and his nephews were residing. The details of cash amounts in Lacs were mentioned on the recovered envelopes. No satisfactory explanation could be given by Rohit Singh Tomar, Sudhir Parmar and his family members about the recovery of Rs. 21 Lac on 18.04.2024 by ACB and the said empty envelopes recovered by ED of M/s R. Sai Transport of Rohit Singh Tomar.

17. During investigation, on 27.04.2023, mobile phones seized from Sudhir Parmar, Ajay Singh Parmar, Gagandeep Singh (Apple iPhone-14 Pro & Samsung Galaxy Z Fold 4 seized vide search listr D-4) and Rohit Singh Tomar were sent to Cyber Forensic Laboratory, Haryana, Panchkula vide letter No.484/PS/ACB/PKL dated 28.04.2023 to get a copy of complete data retrieved forensically from the seized mobile phones. On 17.05.2023, a working copy of the data retrieved from the said mobile phones was received in a hard disc drive along with the said original mobile phones from Forensic Science Laboratory, Haryana vide Report (Opinion) CFL (H) No. 23/CF-341 dated 17.05.2023.

18. The data of mobile phones received from Forensic Science Laboratory, Haryana, was examined and analysed by taking printouts of all the whatsapp chats held amongst Sudhir Parmar, the then Special Judge, CBI/ED, Haryana, Ajay Sharma, Rohit Singh Tomar, Ajay Singh Parmar, Gagandeep Singh and others. Per the ACB, analysis/scrutiny of the said retrieved data done with the assistance of Sh. Kanwar Singh,

Technical Expert IT Cell, ACB, Panchkula disclosed the following-

WhatsApp chats/messages between Sudhir Parmar and Ajay Sharma s/o Sh. Inderveer Sharma w.e.f. 11.04.2021 to 08.03.2023

19. WhatsApp data of conversation between Sudhir Parmar and Ajay Sharma from 01.11.2021 to 14.03.2022 revealed that Ajay Sharma and Sudhir Parmar were in frequent conversation with each other with regard to purchase of Petrol/CNG Pump Site at village Sampka, Pataudi on Gurugram Road.

WhatsApp chats/messages between Sudhir Parmar and Rohit Singh Tomar, the owner of R. Sai Transport, Gurugram w.e.f. 11.08.2018 to 06.04.2023

20. WhatsApp data of conversation between Sudhir Parmar, the then Special Judge, CBI/ED, Haryana and Rohit Singh Tomar, the owner of R. Sai Transport, Gurugram revealed the following:-

(i) On 11.11.2020, in one message, Rohit Singh sought help for his friend Vipul Nanda from Sudhir Parmar and told him that one case of said Vipul Nanda was pending in the Court of Ms. Sonia Sheokand, Civil Judge, Gurugram. Sudhir Parmar assured Rohit Singh on the same day that “Ok brother will tell her”.

(ii) On 12.11.2020, Rohit Singh sent a copy of the said suit/summon to Sudhir Parmar and the same is confirmed by Sudhir Parmar “Ok Rohit Ji and sign of thumb”. Further, reminders were sent by Rohit Singh time and again and finally on 22.12.2021, Rohit Singh told Sudhir

Parmar that because of him the case was disposed of in favour of his friend Vipul and that the other party vacated the property.

(iii) Further on 03.02.2022, Rohit Singh sent message to Sudhir Parmar asking him that he wanted to meet him along with his friend Vipul Nanda and time for meeting was fixed at 7 PM. Again on 02.03.2022, Rohit Singh asked Sudhir Parmar to meet him along with his friend Vipul and time was fixed for 7.30 PM.

(iv) In view of the above chats, ACB, Haryana has alleged that only thereafter, Rohit Singh Tomar started transferring the amount of Rs.1.3 Crore and other amounts of Rs. 14 Lac, 4.70 Lac in small tranches/installments in the accounts of family members of Sudhir Parmar without any documentation/agreements and without any interest.

WhatsApp Chats/messages between Sudhir Parmar and Anil Bhalla, the owner of M/s Vatika Pvt. Ltd., Gurugram w.e.f. 24.09.2020 to 24.03.2023

21. WhatsApp data of conversation between Sudhir Parmar and Anil Bhalla, the owner of M/s Vatika Pvt. Ltd. revealed the following:-

(i) On 24.09.2020, Sudhir Parmar sent a message through his wife Smt. Rekha Parmar to meet Mr. Bhalla.

(ii) On 20.11.2021, Mr. Jamal, a Vice President of M/s Vatika Pvt. Ltd. sent a message to Sudhir Parmar and told him that his contact number was provided by Anil Bhalla to contact him as he wanted to purchase some ready to move property in Vatika India Next Township. Therefore, Mr. Jamal asked Sudhir Parmar for further co-ordination in the

matter. Further, on 14.01.2022, Mr. Jamal, VP of M/s Vatika Pvt. Ltd. told Sudhir Parmar that Mr. Bhalla would come to office the next day.

(iii) On 09.02.2023 at 18.10, Sudhir Parmar asked Anil Bhalla, whether he had spoken to him and in reply at 18.15 on the same day, Anil Bhalla replied that yes, he had spoken to him. Further, on 17.02.2023, Anil Bhalla asked Sudhir Parmar, whether they could speak. And on 27.02.2023 at 10.35 AM, Anil Bhalla asked Sudhir Parmar, whether cheque would be deposited that day. And at 11.25 on the same day, Sudhir Parmar replied Good Morning and Ji yes. Anil Bhalla told Sudhir Parmar to deposit the said cheque in 3-4 days. In continuation, Sudhir Parmar replied that he would ask his nephew Ajay Singh Parmar the same day for exact time and date on which cheque would be deposited. And Bhalla said thanks to Sudhir Parmar.

(iv) On 18.03.2023, Anil Bhalla asked Sudhir Parmar that whether he was in Gurugram and whether he could speak to him. On 24.03.2023, Anil Bhalla asked Sudhir Parmar whether he had any connect with Justice Sudhir Mittal, Chandigarh High Court. And on the same day, Sudhir Parmar replied to Anil Bhalla that No Sir, he is retired Major, ex-Army from Punjab.

WhatsApp Chats/messages between Ajay Singh Parmar and Anil Bhalla, the owner of M/s Vatika Pvt. Ltd., Gurugram w.e.f. 27.02.2022 to 06.03.2023

22. WhatsApp data of conversation of Ajay Singh Parmar and Anil Bhalla, the owner of M/s Vatika Pvt. Ltd. revealed the following:-

(i) On 27.02.2022, Ajay Singh Parmar sent his email Id i.e. Parmarajaygmail.com and application for RTGS/NEFT Remittance of Vatika plot.

(ii) On 13.10.2022, Ajay Singh Parmar sent receipt of RTGS of Rs. 65 Lacs to Mr. Anil Bhalla.

(iii) On 04.02.2023 at 10.43 AM, Ajay Singh Parmar sent message that “Good Morning Sir Documents received” and Mr. Bhalla says Thanks. Again at 11.01 AM, again Ajay Singh Parmar sent message that “Good Morning sir Documents received Regards. And Mr. Bhalla says Noted Thanks.

(iv) Further, on 15.02.2023 at 7.46 AM, Anil Bhalla sent one pdf of court order dated 15.09.2022 passed by Gitanjali Goel, SDJM/Kalka to Ajay Singh Parmar with a request to forward it to Chandigarh. And in reply Ajay Parmar tells that “Sure Sir, regards”.

(v) On 27.02.2023, Anil Bhalla sent a blank copy of Cheque of HDFC Bank in the name of Vatika Atrium Gold Course Road, Gurugram to Ajay Singh Parmar and Ajay Singh replied that “Ji Sir.” Anil Bhalla further tells Ajay Parmar to “Try before 10th of March” and Ajay Parmar says that “Definitely. It will be done by Monday 6th of March”. And further one message with regard to RTGS/NEFT Remittance of Rs.65 Lac is sent by Ajay Singh Parmar to Anil Bhalla.

23. During examination/analysis of mobile data retrieved from mobile phone of Ajay Singh Parmar, copies of 02 letters dated 04.08.2022, addressed to Mr. Saket Kumar, Deputy Director, office of Enforcement Directorate, Chandigarh were retrieved.

24. The said letters are related to M/s Suposhaa Realcon Private Limited and M/s Bequeath Infrastructure companies of M3M Group and it was stated in the said letters that they had Collaboration Agreements with IREO group for project land development, in which M3M has invested Rs.237 358 595 Crores and after completion of all infrastructure, the sale deed in their favour would be done by IREO. It was requested that the conveyance/registry of the said project land in their favour may be allowed by ED. The process of attachment of properties of IREO's land was under process during ED case ECIR 10 of 2021.

25. ACB says that in audio recordings provided by the source, the matter with regard to the said correspondence i.e. letter/email has also been discussed by Roop Bansal with Sudhir Parmar on 12.08.2022 that the said letter has already been sent to Officers/IO of the ED. That Lalit Goyal was not coming forward to get sale deed done for the project land of their joint project and Roop Bansal was afraid that said land may also be attached by ED during their investigation and process of attachment and accordingly, he was seeking help from Sudhir Parmar. In response to that, Sudhir Parmar told him that he had talked to Saket, Manoj Mishra and Sunil, the officers of ED in the matter.

WhatsApp chats/messages between Ajay Singh Parmar and Ajay Sharma w.e.f. 04.01.2022 to 13.04.2023

26. WhatsApp data of conversation of Ajay Parmar and Ajay

Sharma has revealed the following:-

(i) On 04.01.2022 at 09.56 AM, Ajay Sharma sent a message to Ajay Singh Parmar that “Ajay Sharma this side”. Thus, it is claimed by ACB that before this message, they were not in contact with each other on that mobile number and came in contact with regard to purchase of Petrol/CNG Pump-site land only with the reference of Sudhir Parmar. And Ajay Singh Parmar sent his PAN and Adhar card to him with a message that “Hi Sent you the same, Regard”.

(ii) On 11.01.2022, Ajay Sharma sent a message to Ajay Singh Parmar that “Ajay Ji, Please make a chq for Rs.620000/- in the name of Dharamvir Sharma”. Ajay says Okay. Then Ajay Sharma asks Ajay Parmar that “When can he receive” and Ajay Parmar tells that “I will call you soon.”

(iii) On 14.03.2022, Ajay Sharma sent a message to Ajay Singh Parmar that “Gd noon Sir. Please issue chq for Rs.260925/- in the name of Dharamvir Sharma”. Then Ajay Parmar sent a copy of said cheque to Ajay Sharma on the same day. On 28.04.2022, Ajay Parmar messaged Ajay Sharma that “Bhai please send the registry pdf”. And on 29.04.2022, location was shared by Ajay Parmar. On 29.04.2022, registry of the said land of Pump-site of Petrol/CNG at village Sanpka, Pataudi-Gurugram Road was done in Tehsil Pataudi.

(iv) On 06.07.2022, Ajay Sharma sent message that “Dear sir, submit all the documents for Adani CNG Gas dealership for head office i.e. Adhar, PAN, Land location, Photo etc”. And on 13.07.2022, Ajay Singh Parmar sent the said documents to Ajay Sharma. On 21.10.2022, Ajay

Sharma sent message that “Tmmrw is meeting with HMEL. Hope for good”.

(v) On 21.10.2022 onward, Ajay Parmar and Ajay Sharma shared messages of Site Plans of Basement, Stilt etc and with regard to construction material for under construction house at Plot No. 82, Vatika India, Sector 82, Gurugram.

WhatsApp chats/messages between Rohit Singh Tomar, the owner of R. Sai Transport and Ajay Sharma w.e.f. 19.11.2021 to 19.09.2022

27. WhatsApp data of conversation of Rohit Singh Tomar, the owner of R. Sai Transport, Gurugram and Ajay Sharma revealed that from 05.12.2021 to 29.04.2022, Ajay Sharma was regularly sending the update regarding deal of purchase of Petrol Pump site land at village Sanpka, Pataudi Road, Gurugram and exchanging the documents with each other. Whereas, on 11.01.2022, Ajay Sharma sent one typed slip over the whatsapp message of Rohit Singh Tomar showing total cost of the said site of 10 Kanal land as Rs.5.30 Crore, in which share percentage 40:40:20 was shown in the name of Rohit Singh Tomar, Inderveer Sharma and Sudhir Parmar respectively.

28. Thus, according to ACB, analysis clearly revealed that the said deal was for total of Rs.5.30 Crore and the same was to be executed between Sudhir Parmar and other partners/persons. The registry was, however, done in the name of Ajay Singh Parmar instead of the real

owner Sudhir Parmar and other partners and the purchase price of the said land was undervalued and shown only as Rs.1.1 Crore. From the above analysis of whatsapp chats, it was also inferred that Sudhir Parmar, the then Special Judge, CBI Haryana, Rohit Singh Tomar, the owner of R. Sai Transport, Gurugram and family members of Ajay Sharma who acted as middlemen in purchase of Pump-site land of Petrol/CNG Pump at village Sanpka, Pataudi-Gurugram Road, were known to each other for last 4-5 years. Similarly, Sudhir Parmar was known to Anil Bhalla, the owner of M/s Vatika Pvt. Ltd., Gurugram for the last 4 years. Whereas, Ajay Singh Parmar came in contact with Rohit Singh Tomar, Ajay Sharma including his family members and Anil Bhalla only 1½ year back through Sudhir Parmar which clearly reveals that the purchase of both properties i.e. Plot size 327 Sqr. Yard in Vatika Pvt. Ltd. in Sector 82, Gurugram and 10 kanal petrol pump site land at village Sampka, Gurugram and the transfer of huge amount of Rs.1.30 crore and Rs.14 lac, Rs.4.75 lac to Ajay Singh Parmar and his family members was done under the influence of Sudhir Parmar, the then Special Judge of CBI/ED, Haryana at Panchkula.

29. Further analysis/scrutiny of the Call Details Record of mobile numbers 8813888903 of Sudhir Parmar, the then Special Judge, CBI Haryana at Panchkula, 9810845033 of Gagandeep Singh, 9991202603 of Ajay Singh Parmar and 9873332414 of Roop Bansal, the owner of M3M Group revealed the following:-

(i) Analysis/scrutiny of the call details record of mobile numbers of above-named persons revealed that Sudhir Parmar has more than 1000 normal calls during last 01 year with his nephew Ajay Singh Parmar whereas, no normal calls were found to be made with any of the above persons other than Ajay Singh Parmar. According to ACB, this fact is corroborated from audio recording provided by the source in which accused Roop Bansal tells Sudhir Parmar that he had always talked to him over the facetime/whatsapp of the phone of his nephew Ajay Singh Parmar who was employed in M3M since December, 2020.

(ii) Further in the said recordings provided by the source, Sudhir Parmar tells Roop Bansal that he is afraid of his connection with the accused persons being disclosed due to sensitive nature of investigation and he further tells him that he never talks to Roop Bansal on his personal mobile phone or WhatsApp/Facetime and always speaks with him and other accused persons of M3M and IREO through mobile phone or WhatsApp/Facetime from the phone of his nephew Ajay Parmar.

(iii) ACB on the basis of analysis of Call Details Record and locations of mobile phones of Sudhir Parmar, Roop Bansal, Ajay Singh Parmar and Sombir Singh also maintain that on 12.08.2022, they all were found together in the area of house of Sudhir Parmar, where his family had been residing at Vatika India Next, Sector 82, Gurugram from 10 AM to 12.30 PM. The witness namely Sombir Singh also stated in his statement under Section 161 Cr.P.C. that the conversation in audio recording provided by the source between Roop Bansal and Sudhir Parmar had taken place in

his presence on 12.08.2022 at the house of Sudhir Parmar.

30. During investigation on 01.05.2023, all the audio recordings provided by the source were played before Inspector Abhinav Tyagi, CBI, SCB and Inspector Romi Paul, CBI, ACB, Chandigarh after being joined in investigation and after hearing them, they identified the voice of Sudhir Parmar therein as they were conversant with his voice for the reason of their regular appearance in the CBI court at Panchkula in the course of their official duty. Their statements under Section 161 Cr.P.C. were recorded.

31. As per the information received from ED, it was revealed that Directorate of Enforcement registered an ECIR bearing No. ECIR/GNZO/10/2021 on 15.06.2021 against the IREO Group on the basis of 30 FIRs registered against it, its Vice Chairman Managing Director, Lalit Goyal & others for various offences, *inter-alia*, diversion of homebuyer's funds etc. On 16.11.2021, Directorate of Enforcement arrested Mr. Lalit Goyal, MD Vice President of IREO in the said ECIR/GNZO/10/2021. On 18.11.2021, Sudhir Parmar joined as Special Judge of CBI/ED/NIA, Haryana at Panchkula and consequently, a Prosecution Complaint was filed on 14.01.2022 before the court of Special Court of PMLA, Panchkula. The cognizance of the Prosecution Complaint was taken on 21.01.2022. The framing of charges was pending before the court of Special Court of PMLA i.e. before Sudhir Parmar.

ACB has, therefore, alleged that although cognizance was taken on

21.01.2022 but even after lapse of 1.5 years, charges were not framed in the case and the case was listed many times but postponed each time for disposal of pending applications of accused persons. It was also revealed that during the course of proceedings, an application was filed by Lalit Goyal before the Special Court for travelling abroad which was allowed by Sudhir Parmar on 05/08.07.2022.

32. During investigation, relevant record relating to joining and salary structure of accused Ajay Singh Parmar in M3M Group as Manager Legal was obtained from M3M. His Salary Statements/Bank statements, according to ACB, establish and corroborate audio recordings provided by source wherein Sudhir Parmar says that after his joining as CBI Judge, salary of his nephew Ajay had been increased substantially. Scrutiny of the salary statement of Ajay Parmar revealed as under:-

Sr.No.	Salary for the Month	Amount Paid
1.	December 2020	39,468/-
2.	January 2021	69,291/-
3.	February 2021	69,291/-
4.	March 2021	69,291/-
5.	April 2021	63,326/-
6.	May 2021	61,267/-
7.	June 2021	69,291/-
8.	July 2021	69,291/-
9.	August 2021	66,611/-
10.	September 2021	64,296/-
11.	October 2021	66,667/-
12.	November 2021	66,668/-
13.	December 2021	66,667/-
14.	January 2022	66,668/-

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15.	February 2022	73,314/-
16.	March 2022	73,314/-
17.	April 2022	84,885/-
18.	May 2022	84,885/-
19.	June 2022	90,573/-
20.	July 2022	90,573/-
21.	August 2022	1,11,413/-
22.	September 2022	1,11,413/-
23.	October 2022	1,11,413/-
24.	November 2022	1,11,413/-
25.	December 2022	1,11,413/-
26.	January 2023	1,11,413/-
27.	February 2023	62,192/-
28.	March 2023	75,976/-
29.	April 2023	16,850/-
30.	May 2023	1,15,382/-
	Total	23,44,515

33. ACB, therefore, says that the salary of Ajay Parmar was almost doubled by M3M Directors on August 2022 as compared to January 2022 which shows that the increase in pay had direct co-relation with the cases filed by Enforcement Directorate before Sudhir Parmar. Similarly, Income Tax returns filed by Ajay Parmar also revealed a significant jump of income from Rs.2.64 lakh during the year 2021-2022 to Rs. 9 lakhs during the year 2022-23.

34. Thus, per ACB, investigation has disclosed that there was a substantial increase in salary paid to Ajay Parmar nephew of Sudhir Parmar by M3M during the period when Enforcement Directorate was investigating for supplementary prosecution complaint. The salary hike

can, thus, be directly linked to Sudhir Parmar who was the jurisdictional judge in ED case and he in this manner was indirectly bribed by M3M to take undue benefit in the ED case before his Court. Thus, it has been claimed that accused Roop Bansal from M3M Group sought undue favours from Sudhir Parmar, the then Special Judge, CBI Court, Panchkula and granted him undue favours through illegal gratification.

35. Investigation has revealed that Ajay Parmar, Paramveer Parmar and Mrs.Pushpa Devi received Rs.1.30 Crore from the account of Rohit Singh Tomar, the owner of R. Sai Transport, Gurugram from July 2022 to February 2023. Ajay Parmar received total Rs.40 lakhs between August 2022 and February 2023 from the said account of Rohit Singh Tomar during the period when further investigations were being carried on by Enforcement Directorate to file the Supplementary prosecution complaint. The following are the details as per his bank Account:-

Sr.No	Date	Nature of Transaction from R.Sai Transport to Ajay Parmar	Amount
1.	17.08.2022	RTGS	6,00,000/-
2.	02.09.2022	RTGS	6,00,000/-
3.	23.09.2022	RTGS	6,00,000/-
4.	03.10.2022	RTGS	4,00,000/-
5.	29.11.2022	RTGS	6,00,000/-
6.	31.12.2022	RTGS	6,00,000/-
7.	15.02.2023	RTGS	6,00,000/-
	Total		40,00,000/-

36. ACB, therefore, has claimed that the above amounts are also

directly linked to the undue benefit received on behalf of Sudhir Parmar as Ajay Parmar did not have the financial credentials for getting such a substantial amount in a short period of 6 months. It was further revealed that Ajay Parmar transferred about Rs.41 lakhs during the period from October 2022 and March 2023 to his mother Mrs.Pushpa Devi for purchase of a plot shown to be in her name.

37. It was also found during investigation that the mother of Ajay Parmar, namely Mrs.Pushpa Devi also received amount of Rs.54 lakh in her bank account from M/s R. Sai Transport of Sh. Rohit Singh Tomar during the same period of posting of Sudhir Parmar as Special Judge, CBI/ED in the manner as below:-

Sr.No.	Date	Amount received by Mrs.Pushpa Devi from R.Sai Transport
1.	01.08.2022	7,00,000/-
2.	29.08.2022	7,00,000/-
3.	23.09.2022	7,00,000/-
4.	03.10.2022	4,00,000/-
5.	30.11.2022	7,00,000/-
6.	31.12.2022	7,00,000/-
7.	15.12.2023	7,00,000/-
8.	02.03.2023	8,00,000/-
	Total	54,00,000/-

38. As regards above amounts as well, the ACB claims that the same are also directly linked to the undue benefit received on behalf of

Sudhir Parmar otherwise, the old lady cannot be getting such substantial amount in a short period of 6 months. Thus, it is alleged that amount of Rs.40 Lakh received by Ajay Parmar directly was transferred to his mother Mrs.Pushpa Devi who utilised the said 40 lakh along with Rs.54 lakh received directly in her account for purchase of a plot in Vatika Pvt. Ltd. which is a Benami asset of Sudhir Parmar created through unexplained fund transfers received in the names of his relatives.

39. Investigation further revealed that Mr. Sudhir Parmar was in touch/contact with owners of M3M Group through his nephew, Ajay Parmar in blatant violation of professional ethics expected from a Judicial Officer. Sudhir Parmar used to communicate with Roop Bansal, the Promoter/Owner of M3M Group through Facetime/WhatsApp of Ajay Parmar. As per the analyses of Call Details Records of Sudhir Parmar, Roop Bansal and Ajay Singh Parmar and statement of independent witness Sh.Sombir Singh that they were so close that even on 12.08.2022, Roop Bansal visited the house of Sudhir Parmar and met him in the presence of his nephew Ajay Parmar, Paramveer Parmar and discussed the cases registered against M3M and IREO Group against the professional ethics being Judicial Officer. The said act of Sudhir Parmar and Roop Bansal have been clearly corroborated by the Audio Recordings provided by the source and location/Cell ID of the mobile phones of Sudhir Parmar, Roop Bansal and Ajay Parmar.

40. During investigation, voice samples of Sudhir Parmar, Ved Pal Gupta and Roop Bansal were taken on 09.06.2023, 04.08.2023 and 16.08.2023 respectively at CFSL, Chandigarh and original audio recordings received from the source were sent for comparison and expert's opinion on 17.08.2023 to CFSL, Chandigarh. Vide report No. CFSL/CHG/2740/23/FC/452/23536 dated 28.02.2024 of CFSL, Chandigarh, as requested on the relevant 12 audio recordings, opinion/report was received from CFSL, Chandigarh. The CFSL opinion on questioned speakers i.e. Sh. Sudhir Parmar, the then CBI/ED Judge marked as Q/1, Sh. Ved Pal Gupta marked as Q/2 and Roop Bansal marked as Q/3 are as under:-

Recording No.1 File No.230126_0045 1st Recording MP 3

जज:- दर्सल भतीजा लगा है M3M में लिगल ऐडवाइजर ।
 अन्य:- अच्छा ।
 जज:- उसके हो गए 2 साल ।
 अन्य :- औके ।
 जज :- तो बड़े भाई की हो गई Death ।
 अन्य :- हां ।
 जज :- पता ही है आपको ।
 अन्य :- हां हां ।
 जज :- मेरे साथ ही रहते थे ।
 अन्य :- लीवर से भाई साहब हां ।
 जज :- वो साथ ही रहते थे ।
 अन्य :- औ के ।
 जज :- बस फिर दोनो ।
 अन्य :- हां मेरे को बताई थी ।
 अन्य 2 :- सर जी ।
 जज :- हां 20 कर दे ।

CFSL opinion:- Question audio file contain high background noise and insufficient formant information for speaker identification. (Sudhir Parmar i.e. Q/1)

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Recording No.2 File No.230126_0049 5th Recording MP 3

अन्य:- हाँ ।

जज:- पाछले 6 महीने मे उन्हाने मेरे भतीजे को 12 लाख से 18 लाख कर दीये ।

अन्य:- मैं ।

CFSL opinion:- The text spoken by the question speaker audio file was limited and also audio file contain background noise, thus available formant information was not sufficient for speaker identification. (Sudhir Parmar i.e. Q/1)

Recording No.03

जज- इनने मेरे भतीजे को 12 लाख से 18 लाख कर दिये ।

अन्य- जाते ही ।

जज- ये तो चैनल है, अर मेरे ते तो हो रही, भाई के खातर तो डालो । अर आप जब ये चीज दिखा दो मेरा जाड़ा चढ़ जा है ।

अन्य- अरे भाई साहब, मैंने तो मंगाई आपके लिये, मैंने पी ली ना और बताओ ।

जज- ये साले 17-18 हजार करोड थे, वे भी ----- अगर ----- भी दिलावाये इन्हे ।

CFSL opinion:- No clue words could be extracted from the audio recordings of the questioned speakers (Sudhir Parmar) as marked Q/1 from the transcription provided. (Sudhir Parmar i.e. Q/1)

Recording No.04 File No. Recording No.22 MP 4

जज- मने तो एक बस यो ही डर लागै से, यो भतीजा M3M मे है, कदे बहनचोद ।

अन्य – अरे भाई साहब ।

जज - मेरे यंहा आने के बाद ।

अन्य – हाँ

जज- भतीजे को 12 लाख से 18 लाख कर दिए उन्हे ।

CFSL opinion:- Question audio file contain high background noise and insufficient formant information for speaker identification. (Sudhir Parmar i.e. Q/1)

Recording No.5

जज- भाई देख, मिलवा दे अगर मिलवाने-मुलवाने का है तो

अन्य- हाँ खत्म, बस

जज- 50-50 कर दे खाली 50, डेड़ Crore ।
अन्य - सुनो, दो में भी कोई दिकत नही, दो भी ठीक है ।

CFSL opinion:- No clue words could be extracted from the audio recordings of the questioned speakers (Sudhir Parmar) as marked Q/1 from the transcription provided. (Sudhir Parmar i.e. Q/1)

Recording No.6 File No.230126_0050 6th Recording MP 3

रूप बंसल- मैंने आपसे कभी फोन पे बात की है कभी ?
जज- नां-नां अजय के थ्रू हुआ है जो भी हुआ है ।
रूप बंसल- नां नां ठीक है फोन पे ये भी नी बोलता ।
जज - तो फिर उसके बाद भी मैं उसको जो भी ED या CBI का बडा आदमी आता है चाय पिलाए बगैरा नी जाने देता ।
अन्य- ना ना बढ़िया बात है ।
रूप बंसल- सर मेरी एक रिक्वेस्ट है कि मेरी रजिस्ट्री करा दो उससे य
जज- मैंने कह दिया है सुनील को, उसने भी बोला कि मैंने बोल दिया, साकेत को मैंने डाइरेक्टली बोला साकेत को-----
-----में इससे हूं, आईओ का काम होता है । बजाए उसके मनोज मिश्रा से, साकेत से मिल ले । साकेत सारे डोक्यूमेंट देख कर बताएगा अगर कागज पक्के है परमिशन मिल जाएगी ।

CFSL opinion:- The voice exhibits of speaker extracted Q/1 from the question audio files are found similar to the voice exhibits of the speaker marked in respect of their acoustic features, phonetic and other linguistic cues. Hence, voice exhibits of speaker marked Q/1 is the probable voice of the speaker marked S/1 (Sudhir Parmar).

CFSL opinion:- The text spoken by the questioned speaker marked as Q/3 was limited in audio file and the extracted clue words contained insufficient formant information for speaker identification. (Roop Bansal)

Recording No.07 File No. Recording No.21 MPEG

जज- -----यूं ही हाल सुख शान्ति मिल जाए और काम निमट जाए काम इतना अच्छा बढ़िया फैल रहा है चारों तरफ-----
रूप बंसल- आप-2 बताईये न सर 1200 करोड की और ट्रान्सैक्शन है और वो है मैंने ललीत गोयल की एक और परोपर्टी 800 करोड की है । पिछे मेरे को आपने बताई उस दिन जांच की बात । मैंने बसंत भाई को बताई, आपका तो नाम लेता नी, मैं कंही, मेरे को पता चला की इसकी 1200 करोड की अटैच हुई है, की कभी ये सोच रहा है कि ये सब भी दो है । पिछा झूठे अपना वो उनको लैटर भी दे दिया मेल भी भिजवा दी

- वो रजिस्ट्री करवा दे, पिछ्छा झूठे, वो पेएम्मेंट हमने बैंक से ली हुई है, पुरी बैंक से दी हुई है, ओर रजिस्ट्री नी करा रहा है
- जज- ओर ई.डी का बहाना बना रहा है
- रूप बंसल- -----महीने से रोक रखा है
- अन्य- अच्छा सर मुझे एक बात बताओ, हो गया, ई.डी अपने आप करेगी ।
- जज— अपनी पोस्ट पर घबराहट सी भी होती है
- अन्य - आप चिन्ता मत करो नही वो जैयज है भाई साहब
- जज- पोस्ट पर ऐसी हूं मेरी कनेक्टिविटी निकालने लग जाए
- अन्य- नही निकाल लेगा भाईसाहब अरे भाईसाहब जब प्रमोशन के लिए
- अन्य- उसके लिए पता नी क्या क्या कर लेते है
- रूप बंसल- अच्छा सर आप देखो मैंने कभी आपसे फोन पर बात की है
- जज- हां अजय के थ्रू हुआ जो कुछ हुआ
- रूप बंसल- नही-नही ठीक है फोन पे ये भी नी बोलना
- जज- उसके बाद भी मैं डी.ए या सी.बी.आई का बडा आदमी आता है चाय पिलाए बगैरा नी जाने देता ,
- रूप बंसल- सर मेरी एक रिक्वैस्ट है कि एक रजिस्ट्री करवानी है
- जज- मैंने कह दिया है सुनील को, सुनील बोलया कि मैंने बोल दिया । साकेत को मैंने डाईरेक्टली बोल दिया, IRS है । IO के काम होते हैं, बगैर उसके मनोज मिश्रा के बजाए साकेत से मिल ले साकेत सारे डोक्यूमेंट देख कर बताएगा, अक भाई, अगर कागज पक्के है, परमिशन मिल जाएगी ।
- रूप बंसल- सर -----गलत कर रया है ।
- जज-- कौई न आप लगा दो
- रूप बंसल- ललित झूठ पर झूठ बोलता है सर
- जज- मैं एक बात करू सुदांशु मितल को कितनी बात माने मैं सुदांशु मितल को बुलवा देता हूं ये
- रूप बंसल- आप बिच मे आओगे, फिर मैं सोच रहा हूं आपका भी नाम न आए
- अन्य— आप रहने दो भाईसाहब नही-2
- रूप बंसल- -----कच्चा है
- जज— मेरी जो जानकारी है जो ये भल्ला है जिसका वाटिका है ये मितल बहुत मानता है तो जब सभी ने मेरे को अपरोच की तो गोयल वाली बेल की मैंने मना कर दिया था भल्ला ने मेरे को ये कहा कि सर मेरे कहने से आप सिर्फ सुदांशु मितल को मिल लो वो उसका जिजा है मैं कहा ठीक है बुला ले तो सुदांशु मितल को बुलाया था, पर वो, थोडी सी बदमाशी तो करें, सुदांशु मितल ललित की वाईफ को भी लेकर आ गया । मैंने सोचा उसकी वाईफ आई है, जबकी ललीत की वाईफ थी । तो मैंने ये कहा कि भाई ये देख, मैं इस आदमी की जमानत नी ले सकता, मेरी नौकरी दाव पे हो जाएगी । क्योंकि (PMLA) कहता हाई कोर्ट लगा लो । बाकी मैं इसकी इतनी मदद कर सकता हूं कि इसको ये न लगे मैं कोर्ट में कौने में खडा हूं, मेरे वारन्ट निकाल रहे हैं, मुझे विदेश नी जाने देरे, ये मैं इसकी मदद कर दूंगा, ये यूं महसूस करे कि ये घर में ही है, इससे ज्यादा मैं नी कर पाऊंगा ।

- अन्य – नंही वो इतना तो बहुत है भाईसाहब
जज-- -----मान ले गर्ग साहब था, भूपेन्द्र हुड्डा ने यूँ बोलया मुलजिम नम्बर एक क्या नाम है, बोलया जी भूपेन्द्र सिंह हुड्डा, अपने बाप का नाम, भूपेन्द्र सिंह हुड्डा बोलया रणबीर सिंह हुड्डा, साईन कर लेट हो गया । कहता बहनचोद, तू गलती से बैठ गया इस सिट पे तू जात थोड़ी न उतारेंगा । -----की वो 6 महीने में गया फिर ।
- रूप बंसल- जज को कभी प्रसनलाईज नी होना चाहिए ।
जज— अगर आप कहो तो सुधांशु मितल की मिटिंग करा दूँ ।
अन्य – जरूरत नंही है, सर न-न जरूरत है, नंही रजिस्ट्री के लिए ।
जज— ठीक है उस पे-----
- रूप बंसल- मेरे ना 170 का डेड एकड की है जमीन—
जज— आपका ना 100 करोड से निचा तो सौदा ही न आवे, हमने तो सोचते हुए ही चक्कर आवे
- रूप बंसल- इन्होने कहा कि पहले तो दिखाया नी ये, सेल नी कर सकते, इन्होने कहा कि 50 परसैन्टेज पेए कर दो, बाकी की 3 साल 3 इन्सटोलमेंट बाद में इन्होने कहा कि फूल इन्सटोलमेंट दो नंही तो सेल नी करने देंगे । मैंने बैंक से लोन लेके 18 परसैन्ट ब्याज पे पैसे लगा के दिये है

CFSL opinion:- The voice exhibits of speaker extracted Q/1 from the question audio files are found similar to the voice exhibits of the speaker marked in respect of their acoustic features, phonetic and other linguistic cues. Hence, voice exhibits of speaker marked Q/1 is the probable voice of the speaker marked S/1 (Sudhir Parmar i.e. Q/1).

CFSL opinion:- The voice exhibits of speaker extracted Q/3 from the question audio files are found similar to the voice exhibits of the speaker marked S/3 in respect of their acoustic features, phonetic and other linguistic cues. Hence, voice exhibits of speaker marked Q/3 is the probable voice of the speaker marked S/3 (Roop Bansal i.e. Q/3).

Recording No.8

- जज- अब ई.डी. बोम्बे की आई ।
अन्य – हमम ।
जज- पाँच दिन इनका रही ।
अन्य – हमम ।
जज- ये गायब रहे ।
अन्य – हमम ।

जज- इनका अजय धोरे मैसेज आया कि भाई चाचा ने कहिए, मखा हट, बहनचोद, सीधा उनते यू कह दे कि jurisdiction बोम्बे कि है मेरी है ही नी, पैडा छुडा न्यू कह ठीक है jurisdiction बोम्बे की है । बोम्बे की ई.डी. आरी है ईन के खिलाफ कम्पलेट पे FIR दर्ज करा रखी है । इन्ने वा ई.डी. मैनेज करली, थम देख लो । वाईट (White) के तो 25 करोड जारे है टोटल भैनचोद 100 करोड आस पास बतावा है । साले इतने बदमास है 25 कम्पलेन्ट करवा दी अपनी, मै अपने 25 किस तरह ले लू जब दे इतने राखे । 25 FIR करवा दी । FIR होने के बाद ही ।

CFSL opinion:- No clue words could be extracted from the audio recordings of the questioned speakers (Sudhir Parmar) as marked Q/1 from the transcription provided.

Recording No.9

जज रूप, बंसल जो है वो उसको तो IREO वाले केस में दो तीन बार बुलाया था उसकी स्टेटमेंटस ली ।

अन्य - हूँ ।

जज - उसके बाद IREO वाले केस में मुलजिम नी बनाया ।

अन्य - ये IREO -----

CFSL opinion:- No clue words could be extracted from the audio recordings of the questioned speakers (Sudhir Parmar i.e. Q/1) as marked Q/1 from the transcription provided.

Recording No.10

File No. Recording No.17 MP 3

जज - बुलाया था

अन्य - अच्छा

जज - सुनिल को बुलाया था सुनिल को मैने बिठाया -----

अन्य- हूँ

जज- 1200 करोड़ का Matter है

रूप बंसल- नंही अटैच कर रखी है उसको

जज- 1200 करोड का Matter है तो मैं बोलया मै कुछ जमीन उससे अगर इन्होने लेन देन कर रखी हो तो पोसिशन बता दे ।

अन्य - हूँ

जज- कि वो इतना बदमाश है कि इनके पैसे भी ले लेगा और इन्ही की जमीन अटैच करवा देगा तो

अन्य- हां हां

जज- मतलब ये दिखा दे कि कुछ लेन देन हुआ है पैसे हमने पक्के के दे रखे हैं तो मैं उस चीज को अटैचमेंट में नहीं आने दूंगा
अन्य – सर इन्होंने न

CFSL opinion:- The voice exhibits of speaker extracted Q/1 from the question audio files are found similar to the voice exhibits of the speaker marked in respect of their acoustic features, phonetic and other linguistic cues. Hence, voice exhibits of speaker marked Q/1 is the probable voice of the speaker marked S/1 (Sudhir Parmar).

CFSL opinion:- The text spoken by the questioned speaker marked as Q/3 was limited in audio file and the extracted clue words contained insufficient formant information for speaker identification. (Roop Bansal)

Recording No.11

File No.24 MP 4

जज- मेरे 50 कम पड रहे ।
रूप बंसल- आपके- आपके हाँ ।
जज- टांग खींच ले के भी हाई कोर्ट जज ना बन जाए
कुदरत का नियम है ।
अन्य 2- नहीं है भाई साहब ।
जज- मूसे वाले का गोली मरवा दी ।
रूप बंसल- इन्होंने मेरे से एक Promise करया है मैं आपके सामने बताता हूँ कि रूप जी सी.बी.आई. में कुछ नहीं होने दूंगा बस ।
जज- सी.बी.आई. में अगर आप बच गए ना तो ई.डी. मे मैं नहीं होने दूंगा ।
रूप बंसल- ठीक है ।

CFSL opinion:- The text spoken by the question speaker audio file was limited and also audio file contain background noise, thus available formant information was not sufficient for speaker identification. (Sudhir Parmar)

CFSL opinion:- The question audio file i.e. Recording No.24 MP 4 contained background noise and insufficient formant information for speaker identification. (Roop Bansal)

Recording No.12

File No.Recording No.18 MPEG

वी.पी. गुप्ता - सुधीर जी कैसे हो
 जज - मैं बिल्कुल ठीक ठाक सर आप सुनाओ
 वी.पी. गुप्ता - बस चंगा बिल्कुल कंहा विराजमान हो
 जज - आज तो सर मैं थोडा बाहर हुं सर मैं कल गुडगांव आ जाऊंगा
 वी.पी. गुप्ता - अच्छा ठीक है
 जज - बस मैं फोन पर आपसे एक छोटी सी बात बताना चाह रहा था बिईंग सी.बी.आई जज जैसे 10 आदमी मेरे से मिलते रहते हैं
 वी.पी. गुप्ता - तो
 जज - आपने तो बेरा ही है अपने चैम्बर में तो चाय चलती ही रहती है माहौल हमने बदलया नी है
 वी.पी. गुप्ता - हूँ हूँ हूँ ठीक है
 जज - तो some body has come, High Ups में अच्छी उठ-बैठ है उसकी खुद की
 वी.पी. गुप्ता - अच्छा
 जज - टी.सी गुप्ता का काफी मैटेरियल मेरे को दिखाया गया था
 वी.पी. गुप्ता - अच्छा
 जज - मेरे यूँ था ले और किसी के नजदीक हो न हो आपने एक बार मिलवाया जरूर था आपके नजदीक है
 वी.पी. गुप्ता - ठीक है
 जज - उसने अगर वो डोक्यूमेंट देखने है कार्यावाही उसने मुझे ये दिखाया कि मैं तो उसके बेटे का नाम भी नी जानता थीर थीर है कोई , थीर है पता नी धरूव है
 वी.पी. गुप्ता - उसका नाम है याद नी आरया
 जज - चलो मारो गोली उसकी वाईफ उसका बेटा, बेटी और वो चारों भाईसाहब के ताक बनना लगरया है कभी सी. एफ. एस. एल में कभी कंही-2 डेढ़ दो महीने में बम गिर सके है उन पे।
 वी.पी. गुप्ता - अच्छा
 जज - तो मैं उस वक्त तो मैं बैठ गया चुप, मख्या जी हमने के लेना देना हमने तो अपनी नौकरी करनी है
 वी.पी. गुप्ता - ठीक बात है
 जज - तो फिर मैं लै एक बात आपने बता दूँ कोई गडबड बने तो उसते पहले टी.सी के कान में डाल दीयो, बन्दे ते जरूर मैं कह दूंगा वो मिल का दिखा देगा डोक्यूमेंट सच्चे है कि झूठे हैं, वो टी.सी आप देख लो ।
 वी.पी. गुप्ता - अच्छा न
 जज - या आप देख लो पहले
 वी.पी. गुप्ता - मिलवा देना
 जज - बन्दे को बुलवा दूंगा, मिलवा दूंगा मैं, गुडगांव बुलवा दूंगा

- या आप पंचकूला मेरी कोठी में मिल लो
 वी.पी. गुप्ता - हां ये ही हो सकता है
 जज- उससे मिलने आओ न बेटे से
 वी.पी. गुप्ता - हां हां
 जज- तो मेरे पास आ जाओ मैं उस से मिलवा दूंगा कागज मैंने
 देखे हैं, तो मेरी आंख सी खुल गई थोड़ी सी
 वी.पी. गुप्ता - अच्छा
 जज- क्योंकि जो what he told me earlier was totally
 adverse, averse from what I had shown, have been
 shown.
 वी.पी. गुप्ता - अच्छा बन्दा जैनवन (genuine) है
 जज- बन्दा एक दम जैनवन है जिसने दिखाए
 वी.पी. गुप्ता - अच्छा करता क्या है वो काम वाम
 जज— मैंने क्योंकि इन्टरस्ट लिया, मैंने यूं दिखा दिया कि मैंने मैं
 तो गुडगांव का हूं वीकैन्ड पे जाया करू गुडगांव मैंने तो
 पूछी थी सतेन्द्र नरवाल, सेतिया वगैरा की मखा इनका
 के चल रहा है, इनका तो बन्द ही रहा है आपकी छाती पे
 आके पड़ेंगे, अर फेर वो भूपेन्द्र हुड्डा के केस वेस की
 बात चल गई, टी.सी गुप्ता ने तो टी.सी गुप्ता का तो भाई
 एक न्या डाइरेक्टर सी.बी.आई ने डाइरेक्टर सी.एफ.
 एस.एल को कुछ वो भेज रखी है मखा क्या वो फिर
 चिट्ठी दिखाई कि at the earliest ये जो आप देख रहे हो
 वी.पी. गुप्ता - अच्छा धीर नाम है उसका धीर
 जज- है न लास्ट में R लागे है जिस तरह सुधीर है यूं ही लास्ट
 में R है न उसमें
 अन्य- -----
 जज- हां मैं भूल-भाल गया तो आप कहो तो उसने थोडा आगहा
 कर दूं वो मिल लेगा किसी भाई का भला हो जागा तो
 वी.पी. गुप्ता - इसका मतलब ये कह सकते हैं कि आज कल में मिल लेगा
 सीधा चला जाएगा उसके पास
 जज- सीधा चला जा तो पता नी एन्टरटेन (entertain) करेंगे या
 नहीं कि मैंने उनको कहा है कि एक बार मिलवाऊं तो मैं तो
 चुप बैठया रहा, वो तो मैंने और आपने स्टैटीजी
 (strategy) बनानी है कि कैसे मिलवाना है
 वी.पी. गुप्ता - ठीक वो बचेगा कैसे क्या करे फिर हम
 जज- उसी ते पूछेंगे कि इसका उपाए हो तो बता नही तो हम भी
 बीच ते पला झाडा
 वी.पी. गुप्ता - अच्छा कदे उसको फसाने के चक्कर में हो
 जज- नही वो तो न डौक्यूमेंट ही बचाएंगे डौक्यूमेंट बन्दे से
 लेके वो टी.सी. गुप्ता मरवा दिया सारा देश यूं कहेगा ।
 आपने टी.सी मरवाणा हो तो वो बताओ नही तो फेर हम
 उल्टे काने पड़े । कहगा टी.सी. मरवा दिया

- वी.पी. गुप्ता मेरे को क्या मिलरया ले बता -----पकडा ने से
तुम उसकी वजह से हो कौई शक नी है
- जज- नैचूरूली नैचूरूली
- वी.पी. गुप्ता - -----सेफ साईड तो है
- जज- देखो सर
- वी.पी. गुप्ता - मेरे तो आप देखलो सर कितने दूरदर्शन वाले है
- जज- अच्छा आप मैं ये ही तो कह रहा हूं मैं न आप ने कहा एक आदमी से मिलवाया है मैं तो यूं कही टी.सी गुप्ता से मिल के सारे देश से मिल लूंगा। उसने तो भाई टी.सी से ही मिलना है। मैंने फेर आपकी बात टाल दी, टाली न पर परसो मने लागया कि जिस हिसाब से हम तो है न हम तो हैं कोर्ट के आदमी और डौक्यूमेंट पे विश्वास करते है। और डौक्यूमेंट मैंने देखे हैं तो मुझे लगा ये तो साला भीतर जागा पक्का। तो मैंने उससे उसकी नोट लिए बगैर बात कर ली जिस तरह आपने मुझसे बिना पूछे टी.सी से मिलवा दिया था।
- वी.पी. गुप्ता - हा ह हा
- जज- ऐसा ही मैंने उस आदमी से बिना पूछे आपसे -2 बात कर ली कल न यूं न कह दे सर आपने बात फैला दी
- वी.पी. गुप्ता - चल मैं कर लूंगा बात
- जज- आप बात कर लो अगर उसको लगता है ये कुछ नही है तो मारे गोली के दिकत है
- वी.पी. गुप्ता - तो और क्या बिल्कुल ठीक है
- जज- ठीक है न तो सी.बी.आई का -----
- वी.पी. गुप्ता - केस प्रोपर्टी का है प्रोपर्टी के सवाल ही प्रोपर्टी के है तो इसलिए थोडा
- जज- आप जो भी इसने कटा-परोक्त करी है गुडगांव में बैठे के जो पर्चे चलाए है न सारियां का रिकार्ड था
- वी.पी. गुप्ता - अच्छा
- जज- हूं हूं
- वी.पी. गुप्ता - फटी तो है इसकी, इसमें यो डरता फिरे है न किसी को कहता है इसमें तो कौइ डाऊट नही दैनिक जागरण वाले जो है न इसके ससुराल है व इसकी बेटी की
- जज- पर आदमी से मिलवा दूंगा, मतलब तसली हो जाएगी आपकी, के आदमी भी है अर चीज भी है। ऐसा नी होता न सर कल तूं उसकी इन्कवैरी करण लग जाएगा कौन है कौन है आप न मैं आपने डौक्यूमेंट दिखवा दूंगा ये डौक्यूमेंट है
- वी.पी. गुप्ता - ठीक है ठीक है
- जज- उससे कनफरमेशन हो जाएगी ये सच्चे हैं झूठे है
- वी.पी. गुप्ता - ठीक है कल मैं यंही हूं बाए चान्स बैठ के मिल लेंगे
- जज- कल मैं 5:30 बजे से पहले देख लूंगा 5:30 बजे किसी गैस्ट

	ने आना है
वी.पी. गुप्ता -	ठीक है कल मैं सारा दिन फ़्री हूँ छूटी है
जज-	ठीक है ठीक है, सोनू की दुकान पे मिल लेंगे मैंने गाड़ी
	लेकर जाना है वंहा
वी.पी. गुप्ता -	ठीक है चाय पीलेंगे
जज-	सिर्फ़ इस उस में कि आपका नजदीकी है फ़सेगा
वी.पी. गुप्ता -	हां फ़सा तो पडा है
जज-	मेरा टैनयोर में, मेरी छाती पे न खडे हो बस बाद में चाहे
	साले के फांसी लग जाओ

CFSL opinion:- That it has been observed voice exhibits of the speaker marked as Q/2 are found similar to the voice exhibits of the speaker marked S/2 in respect of their acoustic features, phonetic and other linguistic cues. Hence, voice exhibits of speaker marked Q/1 is the probable voice of the speaker marked S/1 & S/2 (Sudhir Parmar and Ved Pal Gupta i.e. Q/1 & Q/2).

41 I have heard contentions advanced by Shri Manjeet Singh, Dy. Director of Prosecution and Shri Pawan Bishnoi, learned Public Prosecutor appearing for State as well as learned defence counsel Shri Sunil K.S. Panwar, Senior Advocate with Shri SPS Parmar for accused Sudhir Parmar, Shri Abhishek Singh Rana, Advocate for accused Ajay Parmar, Shri Viraj Gandhi, Advocate for accused Anil Bhalla, S/Shri Arshdeep Singh Khurana, Gurmohan Singh Bedi, Anand Vardhan Khanna & Ms.Tannvi Sharma, Advocates for accused Lalit Goyal and S/Shri Vijay Aggarwal, Siddharth Bhardwaj & Yavneet Dhakla, Advocates for accused Roop Bansal, on the point of framing of charge in the present case and perused the record carefully.

42. Initiating the arguments, Shri Manjeet Singh, Dy. Director of Prosecution & Shri Pawan Bishnoi, learned Public Prosecutor appearing

for the State while inviting my attention towards the final report and material on the record, contended that from the perusal of charge-sheet, CFSL Reports about voice sample analysis, data/documents retrieved from the mobile phones of the accused, their CDRs/Location ID, documents of properties, bank statements, record of court cases of the firms being investigated by the ED at the relevant time, statements of witnesses under Section 161 Cr.P.C. etc., there is sufficient material available on the record to frame charges against all the accused persons for offences under Sections 7, 8, 11, 13(2) r/w 13(1)(b) of the PC Act and 120-B of IPC. They argued that accused Sudhir Parmar got undue advantage from accused Roop Bansal through his nephew accused Ajay Parmar and this fact stands *prima-facie* established from the fact of his employment in the company of accused Roop Bansal and sudden increase in pay and perks of Ajay Parmar after joining of accused Sudhir Parmar as Special Judge, CBI/PMLA, Haryana at Panchkula. In this connection, ld. Deputy Director and ld. Public Prosecutor representing State drew my attention towards bank statements and salary record of accused Ajay Parmar. They also referred to audio recordings No.6, 7 & 10 and argued that voices therein have been duly established in the CFSL Report as that of the accused Sudhir Parmar and Roop Bansal which reveal that accused Sudhir Parmar extended undue favours to accused Roop Bansal by corrupt and illegal means. Ld. Deputy Director and learned PP for State further

argued by referring to the evidence on record so as to bring home the point about the fact of meeting of accused Sudhir Parmar and Roop Bansal at the former's residence which is duly corroborated by Tower Location of Mobile phones of the accused and also statement of witness Sombir Sangwan. It was also argued that the contents of the recorded conversations and that of whatsapp chats between Ajay Parmar and Sudhir Parmar with accused Anil Bhalla & others, fact of recovery of documents for favouring the accused Lalit Goyal from cup-board of almirah of bedroom of accused Sudhir Parmar in the presence of witnesses, copies of judicial orders favouring accused Lalit Goyal pertaining to grant of permission to go abroad and restraint order to IO about sharing information to media etc. as well as documents and statements establishing undue favour to accused Sudhir Parmar in form of sale/registration of residential plot by Anil Bhalla to family members of accused Sudhir Parmar at much below the market rate and that too on the basis of post-dated cheques, constitute more than sufficient *prima-facie* evidence against the accused persons for framing charges against them. It was lastly argued that accused Sudhir Parmar acquired *benami* residential as well as commercial properties, in the name of Ajay Parmar and other relatives/family members by using cash or money transferred from other persons accounts without any legal justification and hence, present is a fit case for framing charges against the accused persons and, therefore, none

of them can be given a clean chit at this stage where no mini trial or detailed/microscopic evaluation of the evidence is required or permitted under the law. A judgment of Hon'ble Supreme Court of India in **Shafhi Mohammad Vs. The State of Himachal Pradesh, SLP (CRL) No.2302 of 2017 decided on 30.01.2018** was cited by learned Deputy Director of Prosecution and Learned PP for State on the question of applicability of procedural requirements under Section 65(B)(4) of the Evidence Act of furnishing certificate wherein it was laid down that said requirement is applicable only when electronic evidence is produced by a person who is in a position to produce such certificate being in control of the said device and not of the opposite party. Prayer for framing the charges against the accused persons was made.

43. On the other hand, learned Senior Counsel Shri Sunil K.S.Panwar, Advocate appearing for accused Sudhir Parmar strenuously argued that absolutely, there is no *prima-facie* evidence to frame charges against the said accused for the alleged offences punishable under Sections 120-B IPC & 7,8,11 & 13 of the Prevention of Corruption Act, 1988 inasmuch as the entire case against accused Sudhir Parmar who at the relevant time was posted as Special Judge, CBI/PMLA, Haryana at Panchkula, is based upon alleged screen shots of whatsapp chats and audio recordings which cannot at all be relied upon and looked into by this court even at the charge framing stage to form a *prima-facie* opinion

regarding involvement of accused Sudhir Parmar in the present case. Learned Senior Counsel vehemently argued that though prosecution has placed strong reliance upon the electronic evidence i.e. the whatsapp chats and audio recordings but has not bothered to disclose the original source thereof. It was argued that prosecution has alleged that it had received source information against accused Sudhir Parmar as regards the instances of abuse of position as a public servant and criminal misconduct by demand and acceptance of huge amount of bribe and subsequent usage thereof for acquiring *benami* immovable properties in the names of his family members. However, argued the learned Senior Counsel, the prosecution has neither made a disclosure about the alleged source who gave the information to ACB against accused Sudhir Parmar nor has produced the original instrument/device through which the alleged recordings were made, let alone sending the same to CFSL for forensic examination. Learned Senior Counsel submitted that what prosecution has done is to produce “Olympus Digital Voice Recorder WS-85” & a “Compact Disc, make Verbatim CD-R 700 MB” and while drawing my attention towards the CFSL Report (D-40), he submitted that the said report clearly reveals that all the recordings were subsequently transferred on 26.01.2023 in the said Olympus Digital Voice Recorder & CD and hence, the said instrument/device is not the one with which the alleged audio recordings were prepared. As regards the whatsapp chats, learned

Senior Counsel while referring to the FSL Report (D-16) argued that the Investigating Agency had seized and sent the mobile phones of accused Sudhir Parmar, Ajay Parmar and other persons namely Rohit Singh Tomar and Gagandeep Singh to FSL, Haryana, Madhuban for Forensic Examination and retrieval of data. He argued that entire data including the deleted one, was retrieved by the FSL from the said mobile phones and sent to ACB but as clearly admitted by the Investigating Agency, the alleged incriminating whatsapp chats could nowhere be found in the said data and hence, it is not clear as to how and from where the said whatsapp chats originated. Learned Senior Counsel further argued that all the audio recordings were sent to CFSL for Forensic Examination where disputed voices therein were sought to be matched with the specimen voices of accused Sudhir Parmar, Roop Bansal etc. but only in three recordings, the voices matched and even the said recordings in the absence of the original source thereof and the device with which the recordings were made and forensic examination thereof, cannot at all be relied upon. Hence, it was submitted that all the whatsapp chats as well as the audio recordings were forged and fabricated due to ulterior motive of involving/implicating accused Sudhir Parmar, an honest and upright Judicial Officer, in a serious case of corruption by levelling wholly unfounded, false and frivolous allegations of demand and acceptance of bribe from accused Lalit Goyal and Roop Bansal to show them favours in the court cases either pending

in his court or the ones which were likely to be filed subsequently. Learned Senior Counsel submitted that even at the stage of charge, the prosecution cannot run away from its responsibility of disclosing to the court in the final report itself about the original source of whatsapp chats and audio recordings and instruments/devices used for making those recordings and whenever, prosecution fails to do so, it cannot be said to have proved its case *prima-facie even* for limited purpose of framing of charge against the accused and, therefore, the accused persons in such circumstances have to be discharged. Learned Senior Counsel, therefore, made a prayer for discharging accused Sudhir Parmar in the present case.

44. On behalf of accused Lalit Goyal as well, Shri Arshdeep Singh Khurana, Advocate reiterated the submissions advanced on behalf of accused Sudhir Parmar. He also argued that though accused Lalit Goyal was an accused in PMLA case vide COMA/01/2022 in the CBI/PMLA Court presided over by Shri Sudhir Parmar, but there is absolutely nothing on the record to show that he during the proceedings of the said case or any other case, ever passed any favourable order in favour of accused Lalit Goyal thereby showing undue favour to him. Learned Counsel submitted that accused Sudhir Parmar had dismissed the bail application of accused Lalit Goyal and only application allowed by him was regarding grant of permission to visit abroad but the relief granted to that effect was also rendered infructuous as subsequent to the passing of the

said order, accused Lalit Goyal had not visited abroad. Ld. counsel also argued that the said order granting permission to travel abroad was a judicial order and the same was never challenged by the Directorate of Enforcement and hence, it does not lie in the mouth of ACB to say that passing of said order amounted to showing favour by accused Sudhir Parmar to accused Lalit Goyal during court proceeding and hence, there is not even an iota of evidence on the record to show that accused Lalit Goyal had ever approached accused Sudhir Parmar and offered him any bribe much-less huge amount of Rs.5 crores or that the same was demanded and accepted by accused Sudhir Parmar as alleged. Ld. Counsel argued that entire case of the prosecution is based upon surmises and conjectures and evidence produced along-with the charge-sheet does not make out a *prima-facie* case against accused Lalit Goyal and others and, therefore, on basis of such evidence, which does not even give rise to suspicion much-less grave suspicion, no charge can be framed especially when evidence of whatsapp chat and audio recordings is such which undoubtedly cannot translate into admissible evidence at the stage of trial and, therefore, present is not a case of a kind where charges be framed and the accused be made to stand trial for the offences alleged against them. In support of his submissions, ld. counsel placed reliance upon **Karan Talwar Vs. State of Tamil Nadu, 2024 SCC OnLine SC 3803**; **State (GNCT of Delhi) Vs. Netrapal Singh & Ors., 2024 SCC OnLine**

Del 147 and Suresh Budharmal Kalani alias Pappu Kalani Vs. State of Maharashtra, (1998) 7 SCC 337. Ld. Counsel also pressed in service a judgment of Hon'ble Delhi High Court in Ashish Kumar Dubey Vs. State through CBI, ILR (2014) III Delhi 2331 wherein it was held that the possibility of tampering with a tape recorded statement cannot be ruled out without getting the device used for recording the statement, examined by an Expert. Hence, it was argued that the device used for recording the alleged audio recordings was never sent to CFSL for forensic examination by an Expert which strengthens the plea of the accused that the said audio recordings were fabricated so as to falsely implicate the accused persons in the present case. Prayer was made for discharge of the accused.

45. On behalf of accused Roop Bansal, Shri Vijay Kumar Aggarwal, Advocate argued with all the vehemence at his command that accused Roop Bansal has been roped in only for the reason that his company M3M of which he is one of the Promoters, had given employment to accused Ajay Parmar, a nephew of accused Sudhir Parmar and it was so done to seek favours from accused Sudhir Parmar in court cases. Ld. Counsel argued that such inference drawn by the Investigating Agency is based upon no tangible evidence. Infact, accused Ajay Parmar was employed by M3M in the year 2020 and at that time, Sudhir Parmar was posted at Gurugram as Additional District & Sessions Judge (from

Nov 2017 to Apr 2021) and no case pertaining to accused Roop Bansal and his company M3M was pending in his court and as such, he had no acquittance of any kind with said Roop Bansal. He also argued that at the time when accused Ajay Parmar was employed as Deputy Manager-Legal by M3M, it could not have been foreseen that accused Sudhir Parmar will one day be posted as Special CBI/PMLA Judge and, therefore, to seek favours from him, his nephew should be given employment well in advance. Ld. Counsel also argued that subsequent hike in salary of accused Ajay Parmar was keeping in view the increment policy of the company M3M and it has nothing to do with the status of accused Sudhir Parmar as a Special Judge, CBI/PMLA Cases. It was also argued that during the entire tenure of accused Sudhir Parmar from 18.11.2021 to 27.04.2023 as Special Judge CBI/PMLA, no case related to M3M or Roop Bansal or any person related to him was pending in the court of Special Judge, CBI/PMLA, Haryana at Panchkula and, therefore, implication of accused Roop Bansal in the present case is nothing but a grave illegality committed by the ACB and hence, in the absence of any *prima-facie* evidence qua the said accused, no charge can be framed against him. Ld. Counsel, concerning the evidence of whatsapp chats and audio recordings, reiterated the submissions advanced by learned counsel for accused Sudhir Parmar & Lalit Goyal and submitted that since the said piece of evidence has been produced by source i.e. anonymous person, even

certificate under Section 65-B of the Indian Evidence Act cannot be produced by the prosecution as such a certificate can be provided only by the person who is in possession of the electronic device. In support of his arguments, he has placed reliance upon Yogendra Mittal Vs. CBI, CRL.M.C.6183/2019 & CRL.M.A.41717/2018, decided on 15.01.2024 by Hon'ble Delhi High Court; Tomaso Bruno & Anr. Vs. State of Uttar Pradesh, (2015) 7 SCC 178; Bodo Herbert Garbe Vs. CBI & Anr., 2016 (2) JCC 1110 (Delhi HC) and Dipakbhai Jagdishchandra Patel Vs. State of Gujarat & Anr., (2019) 16 SCC 547. Prayer for discharging the accused Roop Bansal was made.

46. On behalf of accused Ajay Parmar as well, Shri SPS Parmar, Advocate adopted the arguments advanced on behalf of accused Roop Bansal. It was additionally argued that accused Ajay Parmar had duly applied for a job in M3M whereupon he was interviewed and after following the proper procedure, he was given employment as Deputy Manager-Legal and the salary which he received was in keeping with the policy of M3M. He argued that hike in salary granted to accused Ajay Parmar was not on account of influence of his uncle Sudhir Parmar but it was based upon his own performance and the increment policy of the company. Ld. counsel, therefore, submitted that accused Ajay Parmar was also falsely implicated. There is no *prima-facie* evidence against him to frame charges and hence, prayer for his discharge was made.

47. Now coming to accused Anil Bhalla, it was argued by Shri Adarsh Dubey, Advocate appearing for him that said accused is neither here nor there and he was implicated in the present case without any rhyme or reason. Ld. Counsel argued that accused Anil Bhalla's company Vatika Ltd. had sold a plot No.78b, Sector 82 measuring 327.96 Sq.Yards in favour of Mrs.Pushpa Devi, sister-in-law of accused Sudhir Parmar for a total sale consideration amount of Rs.1,80,36,817/- by way of a registered conveyance deed dated but the allegation of ACB that prevailing market value of the said plot was much more than the sale consideration amount shown in the conveyance deed and as such, balance amount was paid in black money which was arranged by accused Sudhir Parmar by taking bribe, is totally false and baseless as the prosecution has miserably failed to establish the money trail in the sense that bribe amount of Rs.5 crores was received by accused Sudhir Parmar from the accused of the cases pending in his court and the balance amount over and above the amount of Rs.1,80,36,817/- was paid out of the bribe money so received by him. Ld. counsel, therefore, submitted that accused Anil Bhalla's company Vatika Ltd. sold the plot on the prevailing collector rate and there being no evidence of payment of any amount over and above the sale consideration amount shown in the conveyance deed by accused Sudhir Parmar, no inference can be drawn that accused Anil Bhalla ever got into any kind of wrong doing and, therefore, he too is liable to be

discharged. Prayer was accordingly made.

48. Concerning the matter of framing of charge, it will be appropriate to examine the law on the point. Hon'ble Supreme Court of India in Union of India Vs. Prafulla Kumar Samal, (1979) 3 SCC 4, laid down as under:-

(1) That the Judge while considering the question of framing the charges under section 227 of the Code has the undoubted power to sift and weigh the evidence for the limited purpose of finding out whether or not a prima facie case against the accused has been made out:

(2) Where the materials placed before the Court disclose grave suspicion against the accused which has not been properly explained the Court will be, fully justified in framing a charge and proceeding with the trial.

(3) The test to determine a prima facie case would naturally depend upon the facts of each case and it is difficult to lay down a rule of universal application. By and large however if two views are equally possible and the Judge is satisfied that the evidence produced before him while giving rise to some suspicion but not grave suspicion against the accused, he will be fully within his right to discharge the accused.

(4) That in exercising his jurisdiction under section 227 of the Code the Judge which under the present Code is a senior and experienced Judge cannot act merely as a Post office or a mouth-piece of the prosecution, but has to consider the broad probabilities of the case, the total effect of the evidence and the documents produced before the Court, any basic infirmities appearing in the case and so on. This however does not mean that the Judge should make a roving enquiry into the pros and cons of the matter and weigh the evidence as if he was conducting a trial. (underlining is mine)

In State of Gujarat Vs. Dilipsinh Kishorsinh Rao, (2023) 17 SCC 688, it was laid down as under:-

8. At the time of framing of the charge and taking cognizance the accused has no right to produce any material and call upon

the court to examine the same. No provision in the Code grants any right to the accused to file any material or document at the stage of framing of charge. The trial court has to apply its judicial mind to the facts of the case as may be necessary to determine whether a case has been made out by the prosecution for trial on the basis of charge-sheet material only.

9. If the accused is able to demonstrate from the charge-sheet material at the stage of framing the charge which might drastically affect the very sustainability of the case, it is unfair to suggest that such material should not be considered or ignored by the court at that stage. The main intention of granting a chance to the accused of making submissions as envisaged under Section 227 of the Cr.P.C. is to assist the court to determine whether it is required to proceed to conduct the trial. Nothing in the Code limits the ambit of such hearing, to oral hearing and oral arguments only and therefore, the trial court can consider the material produced by the accused before the I.O. (underlining is mine)

In State of Bihar Vs. Ramesh Singh, (1997) 4 SCC 39 and Sajjan Kumar Vs. CBI, (2010) 9 SCC 368, the proposition of law on the point of framing of charge is that if the evidence which the prosecutor proposes to adduce to prove the guilt of the accused even if fully accepted before it is challenged in cross-examination or rebutted by the defence evidence, if any, cannot show that the accused committed the offence, then there will be no sufficient ground for proceeding with the trial.

Further, in P. Vijayan Vs. State of Kerala, (2010) 2 SCC 398, it was laid down in the manner as below:-

“10. ...If two views are possible and one of them gives rise to suspicion only, as distinguished from grave suspicion, the trial Judge will be empowered to discharge the accused and at this stage, he is not to see whether the trial will end in conviction or acquittal. Further, the words ‘no sufficient ground for proceeding against the accused’ clearly show that the Judge is

not a mere post office to frame the charge at the behest of the prosecution, but has to exercise his judicial mind to the facts of the case in order to determine whether a case for trial has been made out by the prosecution. In assessing this fact, it is not necessary for the court to enter into the pros and cons of the matter or into a weighing and balancing of evidence and probabilities which is really the function of the court, after the trial starts.

11. At the stage of Section 227, the Judge has merely to sift the evidence in order to find out whether or not there is sufficient ground for proceeding against the accused. In other words, the sufficiency of ground would take within its fold the nature of the evidence recorded by the police or the documents produced before the court which ex facie disclose that there are suspicious circumstances against the accused so as to frame a charge against him." (underlining is mine)

49. The point arising in the present case regarding framing of charge, therefore, is required to be decided while keeping in mind the law as propounded in the supra rulings of Hon'ble Apex Court.

50. Now advertent to the case in hand, the same is entirely based upon a source information received by ACB. The source as per the case of prosecution has provided whatsapp chats and audio recordings wherein accused Sudhir Parmar is allegedly demanding bribe of Rs.5 to 7 Crores for helping the owners of M3M in ED cases. The said chats, as claimed, are also to the effect that accused Sudhir Parmar has already been given an amount of Rs.5 Crores by the accused of IREO case i.e. Lalit Goyal. Source information report says that accused Sudhir Parmar did chatting with another person through his own mobile phone and that of his nephew, Ajay Parmar. Prosecution also relies upon the evidence of audio

recordings to say that accused Sudhir Parmar was in regular touch with the owners/promoters of M3M Group namely Roop Bansal and others who at that time was also apprehending being arrayed as accused by ED in the case of money laundering vide COMA/01/2022 titled Directorate of Enforcement Vs. Lalit Goyal & Ors. As regards the said case, after filing of Prosecution Complaint on 14.01.2022, further investigation was going on for the purpose of filing of Supplementary Prosecution Complaint and as such, it has been alleged that accused Roop Bansal was also seeking favours from accused Sudhir Parmar and in lieu thereof, the latter obtained illegal gratification from accused Roop Bansal indirectly by giving employment to Ajay Parmar, a nephew of Sudhir Parmar in M3M as a Deputy Manager-Legal whose salary was almost doubled after appointment of accused Sudhir Parmar as Special Judge, CBI/PMLA, Haryana at Panchkula. It has also been alleged that Rohit Singh Tomar, owner of R. Sai Transport who was known to accused Sudhir Parmar since long, acting under his influence, transferred huge sums of money to the tune of Rs.1.3 Crore in the bank accounts of Ajay Parmar and Paramvir Parmar, nephews and Mrs.Pushpa Devi, sister-in-law of accused Sudhir Parmar and said amount was utilized for purchasing a plot in Vatika Pvt. Ltd. owned by accused Anil Bhalla at a rate much below the prevailing market rate and in this manner, it was alleged that remaining part of the sale consideration amount was paid in black money by using

the bribe amount received by Sudhir Parmar. Similarly, it is also claimed by the prosecution that a commercial plot was also purchased by accused Sudhir Parmar in village Sanpka, Tehsil Pataudi, district Gurugram in which he was having 20% share, in the name of his nephew Ajay Parmar by paying sale consideration much below the prevailing market rate and in that transaction as well, balance consideration amount was paid in black money by using the bribe amount received by accused Sudhir Parmar. Thus, the foundation of the allegations regarding purchase of residential as well as commercial plots by accused Sudhir Parmar in the names of his relatives, is being traced by the prosecution to the bribe received by him from the owners of IREO and M3M. Evidence of demand and acceptance of bribe is the electronic evidence in shape of whatsapp chats and audio recordings provided by a source i.e. an anonymous person, therefore, it is absolutely mandatory for the prosecution to disclose the original source of said chats and recordings as well as the devices which were used for whatsapp chat and preparing the audio recordings because defence has come up with a case that all these whatsapp chats and audio recordings are fabricated and doctored ones and, therefore, they are of doubtful authenticity and hence, cannot at all be relied upon even at the charge framing stage.

51. So far as whatsapp chats are concerned, mobile phones of accused Sudhir Parmar & Ajay Singh Parmar as well as the persons

namely Gagandeep Singh and Rohit Singh Tomar were seized by ACB during searches undertaken on 18.04.2023. All these mobile phones duly sealed were sent to Forensic Science Laboratory, Madhuban for their forensic examination and retrieving the data. A perusal of the Report (Opinion) CFL (H) No.23/CF-341 dated 17.05.2023 (D-16) shows that the entire data including the deleted, was retrieved from the said mobile phones and the same was sent to ACB in one Solid State Drive marked "DATA-SSD". Having received the retrieved data from FSL, Haryana, Madhuban, the same was examined and following conclusion was drawn by ACB:-

"During investigation, in order to find out the alleged WhatsApp Chats as provided by the source relating to demand and acceptance of huge amount of bribe money by accused Sudhir Parmar, data retrieved from the mobile phones of Sudhir Parmar and Ajay Parmar has been perused/examined and efforts have been made to locate the said chats from huge data retrieved from the said phones but the same could not be traced/found, which reveals that the said alleged chats relating to demand and acceptance of bribe money have either been deleted by the accused persons or the same have got automatically deleted or overlapped due to lapse of such a long time period of more than 7-8 months."

52. Thus, it is the own case of prosecution that the alleged whatsapp chat, wherein accused Sudhir Parmar is shown to be demanding and accepting bribe of huge amount as a motive for giving favours to the accused persons in the cases pending in his court, could not be found in

the data retrieved from the mobile phones of accused Sudhir Parmar & Ajay Singh Parmar. It also could not be known by the Investigating Agency as to which was the mobile phone with which accused Sudhir Parmar had allegedly entered into a chat. ACB has tried to give justification by saying that either the data had been deleted from the mobile phones by the accused persons or the same had got deleted automatically due to lapse of long time. However, even the deleted data from the mobile phones of the accused has been retrieved and, therefore, the justification being given by ACB is without any basis. In this view of the matter, the alleged chats on the record, on the basis of which, accused Sudhir Parmar is being accused of demanding and accepting the huge amount of bribe, are totally worthless and cannot at all be looked into even for formation of a *prima-facie* opinion at the stage of framing of charge respecting the alleged offences against the accused persons.

53. Now coming to the audio recordings, prosecution is relying upon as many as 12 audio recordings and claiming that in all those recordings, accused Sudhir Parmar can be heard speaking. Prosecution also claims that in recordings Nos.6, 7 & 11, accused Roop Bansal is speaking while having conversation with accused Sudhir Parmar and in the recording No.12, one V.P.Gupta can be heard having conversation with accused Sudhir Parmar. Prosecution further says that in rest of the recordings, an another person can be heard talking with accused Sudhir

Parmar. In view of the statement under Section 161 Cr.P.C. of the witness namely Sombir Singh, it is claimed that the said another person in the audio recordings is the person namely Sombir Singh and in this manner, prosecution while relying upon those audio recordings has sought to prosecute accused persons for the offences under the Prevention of Corruption Act, 1988 and criminal conspiracy and, therefore, made a prayer for framing charges against them.

54. There is no dispute regarding the fact that all the audio recordings are available in a device called Olympus DVR as well as a CD. It is also undisputed that all the recordings were provided by the source in the said Olympus DVR and CD-R (Verbatim) which in separate parcels each sealed with five seals of ACB (H) stated to be containing questioned audio recordings were sent to CFSL, Sector-36, Chandigarh for forensic examination. Specimen Voice Samples of Sudhir Parmar, Ved Pal Gupta and Roop Bansal were recorded on 09.06.2023, 04.08.2023 and 16.08.2023 respectively at CFSL, Sector-36, Chandigarh regarding which a report (Part of D-40) is on the file.

55. Perusal of the CFSL report shows that questioned audio files contained back-ground noise and out of 12 audio files examined by CFSL, only in respect of four files, voice exhibits of speaker marked Q/1 was opined to be the probable voice of speaker marked S/1 (Sudhir Parmar). Further, in audio file, Recording No.18.mpeg (7762 KB), voice

exhibits of speaker marked Q/2 was opined as the probable voice of speaker marked S/2 (Ved Pal Gupta) and so far as Roop Bansal is concerned, only in one audio file, Recording No.21.mpeg (4565 KB), voice exhibits of speaker marked Q/3 was opined to be the probable voice of speaker marked S/3 (Roop Bansal). As such, only in respect of 4 audio files, as per the opinion of the CFSL, voices of Sudhir Parmar, Roop Bansal and Ved Pal Gupta were found matching with their sample voices. It may be mentioned here that opinion was given by CFSL on the basis of probability only. In any case, prosecution so as to establish its case against the accused persons can place reliance only on those audio recordings in respect of which, voices of the speakers have been identified. The prosecution has come up with a case that in view of the statement of witness Sombir Singh under Section 161 Cr.P.C. identifying his own voice and that of accused Sudhir Parmar & Roop Bansal and the statements of CBI officials namely Inspector Abhinav Tyagi and Inspector Romy Paul under Section 161 Cr.P.C., identifying the voice of accused Sudhir Parmar in the audio recordings, all the audio files become relevant and admissible in evidence and, therefore, the contents thereof are more than sufficient to make out a *prima-facie* case against the accused persons for framing charges against them.

56. It is no doubt true that witness Sombir Singh in his statement under Section 161 Cr.P.C. has stated that in all the audio recordings,

accused Sudhir Parmar is speaking and in one of them, one V.P.Gupta is speaking and in recording Nos.6, 7 & 11, Roop Bansal is having conversation with accused Sudhir Parmar at his Gurugram residence where he (Sombir Singh) was also present but he has also stated that the said audio recordings and whatsapp chats have neither been seen by him nor done by him and he had no idea who had done this.

57. Though it is so but the most significant question arising for the consideration of this court is whether the audio recordings which according to the case of prosecution were made available by the source in Olympus DVR, can be looked into and relied upon at the charge framing stage?

58. A perusal of the CFSL Report dated 28.02.2024 (D-40) makes it clear that all these recordings were inserted/fed in the Olympus DVR on the same date i.e. 26.01.2023. From the record, it is made out that the recordings were not made on a single day and they were prepared on different dates but were stored in Olympus DVR on 26.01.2023 and hence, what is available in the said DVR is not the original recordings but copies thereof. It is not specified as to which was the device used to prepare the audio recordings. Witness Sombir Singh denies having prepared the recordings but says that during all the recordings, he was present at the residence of accused Sudhir Parmar and he has identified his voice in those recordings except the one (recording No.12) having

conversation stated to be between Sudhir Parmar and V.P.Gupta at his residence which was heard by putting the mobile phone on speaker mode. It is the case of prosecution that except recording Nos.6, 7 & 11, in respect of all other recordings, witness Sombir Singh was present with accused Sudhir Parmar at his residence. Even as regards the recording Nos.6, 7 & 11, he has stated that he was present at the Gurugram house of accused Sudhir Parmar. In view of these facts, if the witness Sombir Singh had not made the recording Nos.1 to 5, 8 to 10 & 12 then who was the third person who did that, absolutely nothing has been clarified by the prosecution. What emanates from the record is that when the above recordings were made, only accused Sudhir Parmar and witness Sombir Singh were present at former's official residence then in these circumstances, if the case of prosecution as to the said recordings is taken as true, then it was either the witness Sombir Singh or some other person acting at his express instructions, who recorded the conversation between the two. However, witness Sombir Singh has denied having done so and, therefore, in the absence of a clear evidence as to who actually prepared the recordings, what is the original source thereof and which was the device used to record the conversations, the entire case of the prosecution concerning the recorded conversations is rendered unworthy of acceptance and consequently, the electronic evidence of audio recordings cannot be believed even at the stage of framing of charge. In my

considered opinion, he has been roped in as a witness by the ACB to get over the difficulty posed due to no information being with the ACB concerning the original source of whatsapp chats and audio recordings and device (s) used to prepare the same. Hence, his sole statement will not help the prosecution to prove a *prima-facie* case against the accused persons especially when he appears to be not truthful.

59. Identical observations can also be made qua the recording Nos.6, 7 & 11 in which accused Roop Bansal is also stated to be present alongwith accused Sudhir Parmar and witness Sombir Singh.

60. Similarly, the statement of witness V.P.Gupta and Recording No.12 in which he is stated to be talking to accused Sudhir Parmar over phone, too will not benefit the prosecution firstly for the reasons stated above regarding genuineness of the recordings and secondly, the said recording does not prove any demand or acceptance on the part of accused Sudhir Parmar. Prosecution says that in the said recording, accused Sudhir Parmar and witness V.P.Gupta can be heard making a plan to extort money from a retired IAS officer namely T.C.Gupta but having perused the transcript of the recording, it does not come out that any such plan was being hatched. Further, if that was so, then why was V.P.Gupta kept as a witness and why was he not arrayed as an accused? In my opinion, it was so because V.P.Gupta had not planned anything of the sort with accused Sudhir Parmar. Taking the contents of said recording as a gospel truth, it

only can be said that accused Sudhir Parmar was being loud mouth and boastful while conversing with the witness V.P.Gupta and nothing more.

61. There is no dispute regarding the legal position that in case of audio recordings, before they are relied upon, the prosecution has to disclose the original source thereof as well as the device with which the same were prepared. As such, maker thereof has to be identified, failing which, it will be highly unsafe to rely upon such audio recordings which are prone to fabrication and doctoring very easily. In this connection, reliance may be placed upon a judgment of Hon'ble Supreme Court of India **Nilesh Dinkar Paradkar Vs. State of Maharashtra, (2011) 4 SCC 143** wherein it was held that evidence of voice identification is at best suspect, if not, wholly unreliable. Accurate voice identification is much more difficult than visual identification. It is prone to such extensive and sophisticated tampering, doctoring and editing that the reality can be completely replaced by fiction. Therefore, the courts have to be extremely cautious in basing a conviction purely on the evidence of voice identification/recorded conversation.

62. What precautions are required to be taken, has been aptly explained by Hon'ble Supreme Court of India in **Ziyauddin Burhanuddin Bukhari Vs. Brijmohan Ramdass Mehra, (1976) 2 SCC 17** in the manner as below:

19. We think that the High Court was quite right in holding that the tape-records of speeches were ‘documents’, as defined by Section 3 of the Evidence Act, which stood on no different footing than photographs, and that they were admissible in evidence on satisfying the following conditions:-

(a) The voice of the person alleged to be speaking must be duly identified by the maker of the record or by others who know it.

(b) Accuracy of what was actually recorded had to be proved by the maker of the record and satisfactory evidence, direct or circumstantial, had to be there so as to rule out possibilities of tampering with the record.

(c) The subject-matter recorded had to be shown to be relevant according to rules of relevancy found in the Evidence Act.”

63. In **Ram Singh Vs. Col. Ram Singh, 1985 Supp SCC 611,**

again Hon’ble Apex Court stated some of the conditions necessary for admissibility of tape-recorded statements as follows:-

“(1) The voice of the speaker must be duly identified by the maker of the record or by others who recognize his voice. In other words, it manifestly follows as a logical corollary that the first condition for the admissibility of such a statement is to identify the voice of the speaker. Where the voice has been denied by the maker it will require very strict proof to determine whether or not it was really the voice of the speaker.

(2) The accuracy of the tape-recorder statement has to be proved by the maker of the record by satisfactory evidence-direct or circumstantial.

(3) Every possibility of tampering with or erasure of a part of a tape-recorded statement must be ruled out otherwise it may render the said statement out of context and, therefore, admissible.

(4) The statement must be relevant according to the rules of the Evidence Act.

(5) The recorded cassette must be carefully sealed and kept in safe or official custody.

(6) The voice of the speaker should be clearly audible and not lost or distorted by other sounds or disturbances.”

64. During course of arguments, when ld. defence counsel had taken strong objection to the reliance being placed upon the evidence of audio recordings by the prosecution on the ground that original source thereof has not been disclosed nor the device which was used to prepare the audio recordings has come to light, the court had put a query to learned Deputy Director of Prosecution and learned PP appearing for State as to what was their take on the objection so raised by learned defence counsel. Ld. Deputy Director, faced with the situation, had requested for an adjournment to discuss the matter with the Investigating Officer of the case and then get back to the court with a suitable answer. Ld. Deputy Director on the resumed hearing before the court had produced a letter Memo No.DDP/PKL/2026/41, dated 17.03.2026 which was sent by him to The Director General, State Vigilance and Anti Corruption Bureau, Haryana, Sector-23, Panchkula thereby making a request to ensure that first Investigating Officer alongwith the present Investigating Officer appears before him two days prior to the next date of hearing i.e. 24.03.2026 alongwith the complete record for preparation of the case and for deputing the said officers on the date of hearing with proper justification/explanation to the following queries of the court

raised on 17.03.2026:-

1. Why the original device(s) in which the WhatsApp chats and call recordings of the accused persons were recorded have not been made part of the final report/challan and where the said device(s) are presently located and whether the same were ever taken into possession by the investigating agency or not.

2. Why the relevant Whatsapp chats and recordings which were produced before the Hon'ble Chief Justice of Punjab and Haryana High Court for obtaining permission for conducting raids and registration of FIR against Sh.Sudhir Parmar then CBI Judge Panchkula have not been relied upon by the prosecution in the final report/challan.

65. On 24.03.2026, when the present case was again taken for hearing, nothing was pointed out to the satisfaction of the court as regards Query No.1 mentioned above. Meaning thereby, the prosecution itself admits that it has no information about the original source of the alleged whatsapp chats and audio recordings as well as the device (s) used for making the audio recordings. It may be mentioned here that prosecution is not even in a position to file certificate under Section 65-B of the Evidence Act as it is not in know of the original device/digital record source from which the whatsapp chats and audio recordings were prepared/taken. In this view of the matter, electronic evidence in shape of whatsapp chats and audio recordings produced in this case is not such as can be translated into evidence at the stage of trial. Hence, the evidence on record does not make out a *prima-facie* case against the accused persons nor does it give rise to grave suspicion which are the conditions

precedent for framing charge in a criminal case. In this behalf, reliance with advantage can be placed upon a judgment of Hon'ble Supreme Court in **Karan Talwar** (supra).

66. Prosecution has alleged that a plot measuring 327.96 sq. yards at Signature Avenue, Sector-82, Gurugram was purchased vide Conveyance Deed dated 15.04.2022 from Vatika Private Limited in the name of Mrs.Pushpa Devi, sister-in-law of accused Sudhir Parmar only after his joining as Special Judge, CBI, Haryana at total sale consideration of Rs.1,80,36,816/- which comes to @ Rs.54,000/- to Rs.55,000/- per sq. meter whereas as per the report of Tehsildar concerned and the statements of the property dealers, market rate of the said property was found to be more than Rs.4,25,10,000/- to Rs.4,40,10,000/-. As such, prosecution has alleged that either rest of the payment in respect of said plot has been done by bribe money/black money or plot has been purchased at a very less rate due to influence of Sudhir Parmar which, therefore, is an undue advantage received by him and his family.

67. Prosecution says that these facts and allegations are corroborated by the audio recordings which establish link between Sudhir Parmar and Anil Bhalla, the owner of Vatika Private Limited. Thus, the very basis of the prosecution regarding the above allegations of purchase of residential plot at a rate much less than the prevailing market rate is based upon the audio recordings only and apart from that, there is no

independent evidence to prove the said allegations. The audio recordings in question on which reliance is being placed by the prosecution, for the detailed reasons mentioned above, cannot be relied upon and, therefore, there being no evidence of demand and acceptance of huge amount of bribe money by accused Sudhir Parmar either from accused Lalit Goyal or Roop Bansal and the said bribe money having been utilized to pay rest of the sale consideration amount by accused Sudhir Parmar, it is not possible to accept *prima-facie* at this stage that what has been alleged by prosecution, was done by accused Sudhir Parmar. Prosecution's contention that accused Sudhir Parmar by reason of his position as a CBI Judge may also have used his influence to purchase the plot in the name of his sister-in-law at a very less rate, too is not *prima-facie* acceptable because prosecution itself is not clear as to what actually accused Sudhir Parmar has done in the matter of purchase of the plot in the sense whether he got the balance payment over and above the amount of Rs.1,80,36,816/- made by way of bribe money or he used his influence to purchase the plot at a very less rate. In a criminal case, prosecution is duty bound to come up with a specific allegation and credible evidence to prove the same but in the present case, on the point of purchase of plot at Signature Avenue, Sector 82, Gurugram, prosecution seems to be under some confusion and, therefore, its allegation against accused Sudhir Parmar cannot be accepted.

68. Prosecution has tried to establish link of accused Anil Bhalla with accused Sudhir Parmar by placing reliance upon audio recording No.7 in which accused Sudhir Parmar is claimed to be saying that he met the wife of accused Lalit Goyal and his brother-in-law Sudhanshu Mittal, through Anil Bhalla, Promoter/owner of Vatika Limited and assured them that although he cannot release Lalit Goyal on bail in PMLA case yet he would favour him by dealing with him in the court in a respectful manner and not harass him by issuing frequent warrant/notices or denying permission to visit abroad etc. and make him feel at home while in court. Thus, it is claimed by the prosecution that accused Sudhir Parmar used his official position and reach to Anil Bhalla to plan to purchase of property in Signature Tower, Vatika India Next and negotiated the deal with respect to cash as well as account payment, to consume the cash amount received by him by purchasing the property and making payments in cash with direct meeting with owner of Vatika Group, as per the audio recordings.

69. Firstly, these allegations are also based upon the audio recordings which in view of the discussion above, have been found to be not worthy of reliance. In any case, what Anil Bhalla was to gain by arranging meeting of accused Sudhir Parmar with wife of Lalit Goyal and his brother-in-law Sudhanshu Mittal, has not been explained. Would he have agreed to sell the plot in Vatika Limited at a very less rate than the prevailing market rate in favour of sister-in-law of accused Sudhir Parmar

only for the reason that the latter had done a favour to him by agreeing to meet with wife of Lalit Goyal and his brother-in-law Sudhanshu Mittal?

70. Further, as regards the ED case bearing No.COMA/01/2022 pending in the court of Sudhir Parmar against Lalit Goyal and others, the prosecution has miserably failed to pin-point if accused Sudhir Parmar ever passed any order in favour of accused Lalit Goyal calculated at showing him undue favour during the court proceedings. Bail application of Lalit Goyal was dismissed by accused Sudhir Parmar. He had only allowed an application of accused Lalit Goyal seeking permission to travel abroad vide order dated 05.07.2022 (Part of D-34) and had also disposed of an application seeking direction by accused Lalit Goyal to ED not to share any information in relation to the investigation being conducted by the ED against accused Lalit Goyal with any media house or newspaper vide order dated 20.09.2022 (Part of D-34). The said application was decided in favour of accused Lalit Goyal in view of the stand taken by the ED that it had never shared any such information in relation to the ongoing investigation. Moreover, these were judicial orders and none was challenged by the ED or anyone else before Hon'ble High Court. Having perused the said orders, absolutely nothing can be seen which may show even remotely that by passing the said orders, accused Sudhir Parmar had intentionally extended favours in favour of accused Lalit Goyal. Further, it is not digestible that only for dealing with accused

Lalit Goyal in the court in a respectful manner and not to harass him by issuing frequent warrant/notices etc., accused Sudhir Parmar would have demanded an amount as huge as Rs.5 crores and accused Lalit Goyal would have readily given him the said amount especially when the said case was not going to be decided during the tenure of accused Sudhir Parmar and when, as admitted by prosecution itself, the said case had been pending for about one and a half year for consideration on charge on account of filing of miscellaneous applications. Thus, there is no evidence on the record revealing that accused Sudhir Parmar had promised to grant some major relief to accused Lalit Goyal and for that, he had demanded and accepted amount of Rs.5 crores.

71. As regards the purchase of a piece of land measuring 10 Kanals for Petrol Pump/CNG Pump Site situated at village Sanpka on Pataudi to Gurugram Road on 29.04.2022, prosecution has alleged that said land was purchased in the name of Ajay Singh Parmar i.e. nephew of accused Sudhir Parmar and other persons namely Mohan Lal Sharma and Rohit Singh Tomar in the ratio of 20:40:40 at the rate of Rs.1,01,00,000/- whereas as per the report of Tehsildar Pataudi and statements of property dealers of said area, market area of said land which can be used as commercial land is not less than Rs.6 crores which clearly establish that rest of the payments have been made through black money by the family members of Sudhir Parmar and other partners to adjust bribe money of

Sudhir Parmar besides evading registration charges/stamp duty/taxes in the matter. Prosecution has also stated that one typed receipt which has been found to be sent by Ajay Sharma to Rohit Singh Tomar through his whatsapp message on 11.01.2022 also clearly establishes that value of the land of Petrol/CNG Pump Site was Rs.5,30,00,000/- and as per the said receipt, share is shown in the name of Sudhir Parmar, Inderveer (father of Ajay Sharma) and Rohit Singh Tomar but in order to avoid further allegation at the time of registry, said land was registered in the name of Ajay Singh Parmar, Mohan Lal Sharma and Rohit Singh Tomar.

72. Thus, what has been alleged by the prosecution is that since market value of the Petrol Pump/CNG Pump Site was more than Rs.5,30,00,000/-, therefore, the amount over and above the said amount was paid by way of bribe money which was received by Sudhir Parmar as already discussed above.

73. For this allegation to be proved, prosecution has to establish *prima-facie* at this stage that there was demand and acceptance of bribe amount of Rs.5 crores by accused Sudhir Parmar from accused Lalit Goyal and said black money was used to pay the balance sale consideration amount to the vendor. However, as already discussed above in detail, allegation of demand and acceptance of huge amount of bribe which is based upon alleged whatsapp chats and audio recordings, has not been *prima-facie* proved and, therefore, such allegation of the prosecution

can also not be *prima-facie* believed at this stage.

74. As regards the residential plot purchased at Signature Avenue, Sector-82 and the commercial plot (20% share) purchased in village Sanpka in the names of Mrs.Pushpa Devi, sister-in-law and Ajay Singh Parmar, nephew of accused Sudhir Parmar, payment of sale consideration amount in respect of the same at a price less than the market value may at the best be a case of undervaluation which may lead to evasion of registration charges/stamp duty and if that be so, it is for the Collector concerned to initiate legal action as per the Indian Stamp Act, 1899 or any other law for the time being in force.

75. It is not in dispute that Ajay Singh Parmar, Paramvir Singh Parmar, nephews and Mrs.Pushpa Devi, sister-in-law of accused Sudhir Parmar received amount of Rs.1.3 crore by way of transfer into their bank accounts from R.Sai Transport owned by Rohit Singh Tomar and said amount was used for purchasing the residential plot in Sector-82 of Vatika Limited, Gurugram. Prosecution has come up with a case that said amount was received in multiple tranches under the guise of loan from Rohit Singh Tomar, a close associate of accused Sudhir Parmar, without any documentation, without interest or without any collateral security etc. It is also alleged that neither Sudhir Parmar nor his family members who acquired the properties of value of more than Rs.7-8 crores within short span of 3-4 months were having financial capacity either to afford or to

pay back the amount taken as loan etc. Huge loan amount for purchase of immovable properties and vehicles was taken by accused Ajay Parmar and Sudhir Parmar and for finalization of construction of the plot as well as petrol pump/CNG site was also going to be more than Rs.3 crores and huge monthly rent of Rs.47,000/- besides the installments of said loans taken for construction as well as for vehicles purchased, were to be paid. Apart from that, prosecution also says that recovery of cash amount of Rs.21 lacs during search conducted by ACB on 18.04.2023 could not be explained satisfactorily either by Sudhir Parmar or any of his family members and in this manner, prosecution on the basis of evidence led on record especially the whatsapp chats and audio recordings, want this court to accept its case in respect of demand and acceptance of huge amount of bribe by accused Sudhir Parmar.

76. So far as amount of Rs.1.30 crore having been deposited into the accounts of Ajay Singh Parmar, Paramvir Singh Parmar and Smt.Pushpa Devi, the close relatives of accused Sudhir Parmar, is concerned, these are friendly loans raised by them from the owner of R.Sai Transport namely Rohit Singh Tomar. Prosecution says that said Rohit Singh Tomar was known to accused Sudhir Parmar only for the last many years but he was not known to Ajay Singh Parmar etc. and, therefore, he had transferred the amount into their accounts not on account of their own acquaintance with him (Rohit Singh Tomar) but due to

influence of accused Sudhir Parmar.

77. Amount of Rs.1.30 crore has come directly into the bank accounts of the afore-said persons who are near relatives of accused Sudhir Parmar and such deposit without any documentation, interest rate, collateral security etc. would lead to drawing of an inference of wrong doing on the part of accused Sudhir Parmar only in case the allegation of the prosecution regarding demand and acceptance of huge amount of bribe is *prima-facie* proved at this stage. Again at the cost of repetition, it may be mentioned here that since said allegation has not been *prima-facie* established on the strength of evidence brought on record especially the electronic evidence of whatsapp chats and audio recordings, in that eventuality, the amount of Rs.1.30 crores remains as friendly loan only which is the headache of the loanee to pay to the lender and it cannot be said that said amount was deposited in the accounts of above named persons in lieu of black money received by accused Sudhir Parmar having been given to Rohit Singh Tomar.

78. It has also been alleged by prosecution that analysis of whatsapp data of conversation between accused Sudhir Parmar and Rohit Singh Tomar of R.Sai Transport, Gurugram revealed that on 11.11.2020, in one message, Rohit Singh Tomar sought help for his friend Vipul Nanda from Sudhir Parmar and told him that one case of said Vipul Nanda was pending in the court of Ms.Sonia Sheokand, Civil Judge,

Gurugram and Sudhir Parmar had assured Rohit Singh Tomar on the same day by sending him a message. Thereafter, reminder requests were sent by Rohit Singh Tomar time and again and finally on 22.11.2021, Rohit Singh Tomar told Sudhir Parmar that because of him, the case was disposed of in favour of his friend Vipul and then on 03.02.2022, he sent a message to accused Sudhir Parmar asking that he wanted to meet him along alongwith his friend Vipul Nanda and time for meeting was fixed. It is alleged that only thereafter, Rohit Singh Tomar started transferring the amount of Rs.1.3 crore and other amounts of Rs.14 lacs and 4.70 lacs in small tranches/installments in the accounts of family members of Sudhir Parmar without any documentation or agreement and without any interest.

79. Thus, on the basis of above-said whatsapp chat, prosecution wants to convey as if the amounts deposited in the bank accounts of family members of accused Sudhir Parmar were due to Rohit Singh Tomar's friend Vipul Nanda's work having been got done with the help of accused Sudhir Parmar from the court of Ms.Sonia Sheokand, Civil Judge, Gurugram. The version so set-up is not *prima-facie* believable because firstly ACB has not collected any evidence to show that the said case of Vipul Nanda in the court of Ms.Sonia Sheokand was decided as per the desire of Vipul Nanda. Further, Ms.Sonia Sheokand was not joined in investigation on this point to know if accused Sudhir Parmar ever approached her for the purpose of decision of said case. Still further,

prosecution itself is not clear if the above-said amounts were deposited in the accounts of family members of Sudhir Parmar due to the latter having got the work of Vipul Nanda done from the court of Ms.Sonia Sheokand or the said amounts were deposited in lieu of the bribe amount having been delivered to Rohit Singh Tomar at the behest of accused Sudhir Parmar. Hence, prosecution is taking two different pleas qua the same amount of Rs.1.3 crore, 14 lacs and 4.70 lacs which came to be transferred in small tranches/installments in the accounts of nephews and sister-in-law of accused Sudhir Parmar.

80. Prosecution has levelled the allegation of unjust enrichment thereby seeking to invoke the offence under Section 13(1)(b) of the PC Act, 1988 on the ground that accused Sudhir Parmar and his family members acquired the properties of value of more than Rs.7-8 crores within a short span of 3-4 months but without having any financial capacity either to afford or to pay back the amount taken as loans etc. However, none of the said properties have been purchased by accused Sudhir Parmar and same have been purchased by his nephew Ajay Singh Parmar and sister-in-law Mrs.Pushpa Devi who have their own sources of income and in the absence of proof of demand and acceptance of bribe amount by accused Sudhir Parmar, it is not possible to say that payments were made by utilizing the bribe money received by accused Sudhir Parmar and, therefore, said properties were his *benami* properties.

81. Only one vehicle make Fortuner Sigma 4x4 was purchased by accused Sudhir Parmar on 27.03.2023 for which he had obtained loan of Rs.26 lac from State Bank of India, after due permission of Hon'ble High Court.

82. Even amount of Rs.21 lacs recovered from Gurugram House of accused Sudhir Parmar at the time of house search too cannot be having any connection with the bribe amount allegedly received by accused Sudhir Parmar. Moreover, prosecution by taking such plea is trying to establish that accused Sudhir Parmar is possessing assets beyond his known sources of his income and hence, he is sought to be prosecuted for offence under Section 13(1)(b) of the PC Act. In this connection, it may be mentioned here that disproportionate assets case (DA case) stands on a different footing than the case related to demand and acceptance of bribe by a public servant. In the present case, the necessary investigation peculiar to a DA case has not been conducted during course of which, check period is taken, income & expenditure of the public servant during the said period is taken into consideration and assets acquired by the public servant prior to the check period and those acquired by him during the check period are taken into consideration. Such an exercise has not been done in the present case by the Investigating Officer. Hence, offence under Section 13(1)(b) is not attracted. Moreover, recovered amount of Rs.21 lacs at the house accused Sudhir Parmar at Gurugram is sought to

be proved as a part of the bribe amount which he allegedly received from accused Lalit Goyal for showing him favour during the proceedings of the ED case pending in his court. Said allegation has not been *prima-facie* proved on the basis of evidence of whatsapp chat and audio recordings and hence, plea taken by the prosecution to frame charge against accused Sudhir Parmar for offence under Section 13(1)(b) of Prevention of Corruption Act, 1988 has to fail.

83. It is also alleged by prosecution that on 18.04.2023 during search at the official residence of accused Sudhir Parmar at Panchkula, a copy of a draft order in bullet points and synopsis relating to IREO case giving clean chit to Lalit Goyal was recovered in the presence of independent witnesses and Shri Subhash Mehla, the then Id. District & Sessions Judge, who was specially deputed by Hon'ble High Court during the house search. Thus, prosecution has maintained that the said draft order and synopsis were given by the accused party i.e. Lalit Goyal to guide or direct accused Sudhir Parmar in deciding his case as the said documents were not found in court file or office file and it was kept separately in isolation in one almirah. In this behalf, the search list D-3 and documents which were recovered from the official residence of accused Sudhir Parmar on 18.04.2023 have been perused. Search List D-3 in column No.2 "*Description of Article Seized*" mentions "*From almiraha of the bedroom i.e. brief note of the case of Lalit Goel, Reply to the*

Rejoinder of Lalit Goel in CRM No.-M 7939 of 2022 and relating to IREO case and purchase of vehicle. (total pages 21). Thus, what was recovered was a brief note of the case of Lalit Goyal and short re-joinder filed on behalf of Lalit Goyal to the reply filed by ED before Hon'ble High Court in a petition bearing CRM-M 7039 of 2022. A draft order will always be similar to an order that may be passed by the court giving decision for or against the parties to the litigation but no such document which could be labelled as "draft order" was recovered. Recovered documents are only a brief note and short re-joinder and nothing can, therefore, be inferred from the circumstances of the case that these documents were supplied to accused Sudhir Parmar by accused Lalit Goyal with a view to have his case decided in his favour. Moreover, the case itself was at its initial stage. Even charge was not framed and the same admittedly was pending for arguments on miscellaneous applications and, therefore, to say that said documents were supplied to seek favours from accused Sudhir Parmar is not at all acceptable.

84. With a view to prove its case *prima-facie*, prosecution has also taken the stand that accused Sudhir Parmar got undue favour for and extending favours to accused Roop Bansal, Promoter/Owner of M3M. It is alleged by prosecution that when in the year 2017 to April, 2021, accused Sudhir Parmar remained posted as Additional District & Sessions Judge, Gurugram, he came in contact with the promoters/owners of M3M

Group and IREO Group and got appointed his nephew Ajay Singh Parmar, as Deputy Manager-Legal in December, 2020 on the salary of Rs.8-10 lacs per year. When accused Sudhir Parmar joined as Special Judge, CBI/ED/NIA, Haryana at Panchkula on 18.11.2021, salary of his nephew Ajay Singh Parmar was hiked substantially by M3M to Rs.18-20 lacs per year during the period from January, 2022 to August, 2022. Thus, what was argued by ld. Deputy Director of Prosecution and learned Public Prosecutor for State was that accused Roop Bansal was foreseeing action against him by the ED in a case vide COMA/01/2021 and hence, he indirectly bribed accused Sudhir Parmar by giving employment to his nephew and giving him salary hike at a time when accused Sudhir Parmar came to be posted as Special Judge, CBI, Haryana at Panchkula. Ld. Deputy Director had also argued that accused Sudhir Parmar was in regular touch with accused Roop Bansal which was something opposed to Judicial Ethics. He met accused Roop Bansal on 12.08.2022 at his residence and discussed the cases of IREO & M3M Groups and though justification during investigation was given by accused Sudhir Parmar that Roop Bansal had paid a visit at the house of Sudhir Parmar on 12.08.2022 to mourn the death of father of accused Ajay Singh Parmar but said explanation was completely unsatisfactory because there was a long gap between the death of father of accused Ajay Singh Parmar on 29.04.2022 and visit of Roop Bansal at the house of Sudhir Parmar on 12.08.2022.

Thus, it was submitted that accused Sudhir Parmar was involved in corruption and in this connection, my attention was also drawn towards copies of two letters dated 04.08.2022 addressed to Mr.Saket Kumar, Dy.Director, Enforcement Directorate, Chandigarh from M/s Suposhaa Realcon Private Limited and M/s Bequeth Infrastructure, companies of M3M Group which were retrieved from the mobile phone of accused Ajay Singh Parmar, by virtue of which, it was represented by M3M Group that conveyance of the project land to M3M by IREO may be allowed as per the terms of the collaboration agreement and said request was made as attachment of properties of IREO was under process in ED case ECIR 10 of 2021. Prosecution says that above-said letters substantiate and prove the contents of audio recordings No.7,9,10 & 11 provided by the source wherein accused Sudhir Parmar had claimed before accused Roop Bansal that he had used his official position with the officials of ED asking them to consider the request of M3M for non-attachment of the afore-said project land and grant permission for registry. Thus, it is alleged that during the meeting on 12.08.2022 at the residence of accused Sudhir Parmar, discussion about the above matter had taken place and audio recordings reveal all that wherein Sudhir Parmar tells Roop Bansal that with regard to the above matter, he had talked to Saket, Manoj Mishra and Sunil, the officers of the ED in the matter. Prosecution has also relied upon the mobile phone locations of accused Sudhir Parmar, Ajay Parmar

and Roop Bansal on 12.08.2022 to bring home the point that they met at the residence of Sudhir Parmar when the audio recordings were done which is corroborated by the statement of witness Sombir Singh whose voice also figures in the said audio recorded conversation. It is also submitted by the prosecution that the properties relating to Joint Collaboration Agreement of IREO and M3M find no mention during the process of attachment by ED in case ECIR/GNZO/10/2021 and the same were not attached by ED. This all according to the prosecution, proves that accused Sudhir Parmar was deep into corruption in conspiracy with the co-accused Lalit Goyal etc. and hence, charges be framed against all the accused.

85. Firstly, looking to the appointment of accused Ajay Singh Parmar in M3M as Deputy Manager-Legal, the appointment letter dated 14.12.2020 issued by M3M (D-10) has been perused which shows that accused Ajay Singh Parmar had duly applied by way of a written application for a job and appeared for interview and only thereafter, he was given appointment as Deputy Manager-Legal vide letter dated 14.12.2020 at annual salary of Rs.8,75,000/-. All the terms and conditions of the employment are mentioned in detail in the said letter. Then there is a Letter of Increment dated 23.08.2022 (Part of D-1) by virtue of which, w.e.f. August, 1st, 2022, his salary was hiked to Rs.15 lacs per annum. Thus, it is sought to be shown as if salary hike was given as accused

Sudhir Parmar had come to be posted as CBI Judge at Panchkula whereas facts are to the contrary. Accused Sudhir Parmar came to be posted as Special Judge, CBI on 18.11.2021 but no pay hike was given at that time. Infact, in November, 2021, he was drawing monthly salary to the tune of Rs.66,668/- only. He was given hike in salary only w.e.f. August, 2022 when he came to receive an amount of Rs.1,11,413/- per month. Between November, 2021 till July, 2022 as well, the salary of accused Ajay Singh Parmar saw some increase by approximately Rs.6,000/- to Rs.10,000/- thousands at each occasion of increase, but that must have been on account of increment policy of the company. Hence, it is wrong to say that salary of accused Ajay Singh Parmar was hiked just on the posting of accused Sudhir Parmar as Special Judge CBI at Panchkula. Even otherwise, motive behind hike in salary given by the prosecution is that accused Roop Bansal wanted favours from accused Sudhir Parmar for which he had readily agreed on the condition of payment of bribe. This is sought to be proved on the basis of audio recordings but as discussed above, the same cannot be taken into consideration and, therefore, salary hike of accused Ajay Singh Parmar had nothing to do with the position of accused Sudhir Parmar. He rather got the hike due to his performance and policy of the company. In any case, at the time of appointment of accused Ajay Singh Parmar as Deputy Manager-Legal in M3M, accused Sudhir Parmar was posted at Gurugram as Additional District & Sessions Judge.

There is no evidence except the bald allegation that at that time, accused Sudhir Parmar had any acquaintance with the owners/promoters of M3M. There was no case of M3M pending in the court presided over by accused Sudhir Parmar at Gurugram and, therefore, it cannot be said that he by exercising his influence, got accused Ajay Singh Parmar appointed in the said company.

86. The plea of prosecution that accused Sudhir Parmar and Roop Bansal were in regular touch with each other and for that, the stand taken that a meeting was held between them on 12.08.2022 at the residential house of accused Sudhir Parmar at Gurugram, is based upon audio recordings wherein it is there that for doing the work of accused Roop Bansal, accused Sudhir Parmar had spoken to ED officials namely Saket, Manoj Mishra and Sunil. However, to know the truth, ACB never joined the said ED officials in investigation. Moreover, audio recordings have been found to be not reliable and even the statement of witness Sombir Singh will not substantiate the fact of meeting dated 12.08.2022 for the reason that even the statement of said witness does not *prima-facie* prove anything much-less the factum of alleged meeting dated 12.08.2022. Moreover, as per his statement, the said meeting took place in first week of July or August whereas the specific case of the prosecution is that the said meeting was held on 12.08.2022. Evidence of mobile phone location only proves the presence of the persons carrying mobile

phones anywhere in an area within which the frequency of mobile tower extends and it does not prove the presence of the said person at a particular place. Further, evidence of audio recording Nos.9, 10 & 11 to the effect that accused Sudhir Parmar during conversation with unknown person, admits/claims that he did not let Roop Bansal become an accused in ED cases etc., too is not *prima-facie* acceptable at this stage because all these allegations are based upon the audio recordings which have been found to be unreliable.

87. The plea taken by prosecution that the properties regarding which relief was sought by accused Roop Bansal were not attached in case ECIR/GNZO/10/2021 gives the impression as if following the intervention of accused Sudhir Parmar, ED did not go ahead with the attachment of the properties. However, if it is so, did the ED officials do what was told to them by accused Sudhir Parmar and if that is so, did the ACB initiate any legal action against the said ED officials? Nothing of the sort has been put-forth by the prosecution. In my opinion, if the properties were not attached, then ED must have taken a conscious decision in that behalf as per law and as such, accused Sudhir Parmar cannot be taken to be a person getting that done thereby doing a big favour to accused Roop Bansal.

88. As a result of the foregoing and detailed reasons set out, it is observed that no offence under Section 120-B of Indian Penal Code & 7,

8, 11 & 13 of the Prevention of Corruption Act, 1988 is made out against the accused persons as evidence on the record is not such as can be translated into admissible evidence at the stage of trial. Therefore, present is not a case where the accused persons be subjected to the ordeal of full-fledged trial in the absence of sufficient evidence. Hence, upon consideration of the record of the case and the documents submitted therewith and after considering the rival contentions, I am of the considered opinion that there is no sufficient ground for proceeding against any of the accused and hence, all of them are discharged.

Pronounced in open court.
20.04.2026

(Rajeev Goyal)
Special Judge (CBI),
Haryana at Panchkula
UID No.HR-0147

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Stenographer G.I

Note: This order contains Eighty Four pages and each has been checked signed by me.

(Rajeev Goyal)
Special Judge (CBI)
Haryana at Panchkula. 20.04.2026

Rajeev Goyal,
Special Judge (CBI),
Haryana at Panchkula
20.04.2026